

**FOOD PACKAGES POLICIES AND PROCEDURES
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**MARYLAND DEPARTMENT OF HEALTH
WIC PROGRAM
POLICY AND PROCEDURE MANUAL**

**Policy and Procedure Number: 3.00
Effective Date: October 1, 1995
Revised Date: February 12, 2026**

SECTION: FOOD PACKAGES

SUBJECT: Overview of Food Packages

A. Policy

The WIC Program provides food packages that contain supplemental foods for low-income women, infants and children. The food packages are not intended to meet all the nutritional needs of participants. Nutrition education will emphasize the need for a variety of other foods to achieve a balanced diet.

The food packages were revised according to the requirements of the Final Rule, published in the Federal Register on April 18, 2024(see Reference). The revisions – which align the WIC food packages with current scientific and dietary guidance – are based on the recommendations of the National Academies of Sciences, Engineering, and Medicine in the report of its review of the WIC food package. The revised food packages are intended to:

1. Provide additional flexibility, variety, and choice for individuals with special dietary needs due to medical conditions, limited cooking and/or storage facilities, and cultural or personal preferences, while ensuring the delivery of priority nutrients for WIC participants.
2. Consider marketplace availability of supplemental foods.
3. Increase the actual or perceived value of the WIC food packages to eligible populations.
4. Improve access to nutritious foods.
5. Promote and support breastfeeding durations and intensities.
6. Provide foods in amounts that are more consistent with supplemental nature of the Program.
7. Align with Dietary Guidelines for Americans guidance to follow a healthy dietary pattern and meet, but not exceed, recommended food group and subgroup amounts and nutrients appropriate for an individual's life stage.
8. Build on the 2014 changes to the WIC food packages and positive impact those had on participant diet quality and reduced prevalence of obesity among children.

B. Procedure

The food package shall contain

1. For Infants:

Breastfeeding Support (for infants exclusively and partially breastfed)

Infant formula (for breastfed infants who are supplemented with infant formula and non-breastfed infants)

Infant cereal (for infants age six months old and older)

Infant fruits and vegetables (for infants six months old and older)

Cash Value Benefit (fresh, frozen, canned) can be received in lieu of infant fruits and vegetables (for infants six months old and older)

Infant meats (for exclusively breastfed infants six months old and older)

2. For Children and Women (combinations of these foods may be included):

Milk, yogurt, cheese, plant based milk alternative, and tofu

Fruit juice

Eggs

Cereal

Beans and/or nut/seed butter

Whole wheat bread or other whole grains

Fruits and vegetables

Canned fish

Attachment:

3.00A Food Package Contents

Reference:

1. 7 CFR 246 Special Supplemental Nutrition Program for Women, Infants, and Children (WIC): Revisions in the WIC Food Packages - Final Rule, 4/18/2024

Revisions:

- | | |
|-------|---|
| 10/09 | Replaced rationale for the WIC food packages based on Public Law 108-265 with background information regarding the development of revised packages based on the IOM's review and recommendations for revisions of the food packages. Revised list of food combinations that packages may contain. Added Attachment 3.00F and changed previous 3.00F to 3.00G. |
| 01/10 | Revised Attachments 3.00A, 3.00B, 3.00E and 3.00G to include whole milk packages for women and to reflect the increased monetary value of FVB to \$10.00. |
| 10/10 | Attachments 3.00A-F. Replaced quart sized containers of lactose-reduced |

milk with an additional half-gallon container every other month. Changed food item descriptors from “lactose-reduced” with “lactose-reduced/free.”

- 01/11 Updated Attachments 3.00 A-G to include soy beverage and tofu food package options.
- 10/11 Updated Attachments 3.00 A-F to include kosher cheese/soy beverage and additional BE and PG/BP cheese/half-gallon soy beverage food package options.
- 10/12 Removed Attachments 3.00 A-F. Renamed Attachment 3.00 G as Attachment 3.00A.
- 10/14 Replaced Interim Rule with Final Rule and updated published date. Updated References Updated Attachment 3.00A to reflect the increased monetary value of FVB in child food packages to \$8.00. Replaced whole wheat bread with whole grain bread in child and appropriate women food packages. Added information in footnotes indicating allowance of reduced-fat (2%) milk for one-year old children and whole milk for women with appropriate documentation. Added footnote to indicate pregnant women exclusively or mostly breastfeeding as an eligible category for Food Package VII. Updated attachment 3.00A to allow infant fruit and vegetables in place of CVB in food package III.
- 04/15 Updated Attachment 3.00A. To be consistent with federal language the term ready-to-use (RTU) formula was replaced with ready-to-feed (RTF); maximum monthly allotment was replaced with maximum monthly allowance (MMA); breastfeeding exclusively replaced breastfeeding fully; breastfeeding partially was replaced with breastfeeding mostly or breastfeeding some . The term WIC-eligible nutritionals was added next to formula for the MMA for Food Package III.
- 10/15 Updated 3.00A to reflect the new CVB amounts for women which increased from \$10.00 to \$11.00.
- 6/17 Updated policy related to eWIC including FVB and CVB.
- 10/18 Added yogurt to food package options. Updated 3.00A to include yogurt and whole wheat/whole grain pasta.
- 11/19 Corrected Attachment A CVB for children to \$9.
- 7/21 Added information about benefits for breastfed infants.
- 6/21 Added oats to food package options. Updated 3.00A to include oats.
- 12/23 Updated 3.00A footnote 1 to include powdered formula shall be issued, when available. Updated language related to CVB - varies based on annual federal appropriations.

- 07/25 Updated Final Rule published date, reference, and intended purpose for food package revisions. Updated 3.00A removed footnote for maximum formula amount issuance in the first month, infant cereal amounts, added CVB option instead of infant fruits and vegetables, meat amount for IBE, added footnote for CVB annual adjustment, and removed separate food package II for 9-11 months.
- 02/26 Updated to include plant-based milk alternative and nut/seed butter. Updated 3.00A to reflect the Final Rule, 4/18/24 food package revisions. Replaced food package names to include new A & B for food package IV and V, replaced soy beverage with plant-based milk alternative, food package IV-A and IV-B yogurt types, yogurt maximums, tofu maximums, option for legumes/tofu instead of eggs, CVB varies adjusted annually for inflation, added white quinoa bulgur buckwheat cornmeal, option for fruit juice with reduced CVB, replaced peanut butter with nut/seed butter, and canned fish for all women and children. Added information in footnote indicating allowance of low fat yogurt for food package IV-A. Added information in footnote about new food package for breastfeeding partially (mostly) women and pregnant with two or more fetuses. Added information in footnote indicating allowance of reduced-fat (2%) milk for women.

FOOD PACKAGE CONTENTS

The following is a description of the six WIC Food Packages, **maximum** monthly allowance, per USDA Final Rule 7 CFR Part 246.

Food Package I--Infants Birth through 5 months:

Infant Breastfed Exclusively (IBE)	Birth-3months	4-5 months
Breastfeeding support	as needed	as needed

Infant Breastfed Partially (IBP)- mostly¹	Birth-3 months*	4-5 months
Concentrated liquid formula OR	Up to 388 fl oz reconstituted	Up to 460 fl oz reconstituted
Powdered formula OR	Up to 435 fl oz reconstituted	Up to 522 fl oz reconstituted
Ready-to-feed (RTF) formula	Up to 384 fl oz	Up to 474 fl oz

*Formula should not be routinely given during the first month. Up to 435 fl oz reconstituted powder may be issued if there is a qualifying condition as listed in Policy and Procedure 5.09.

Infant Formula Fed (IFF) and IBP- some²	Birth -3 months	4-5 months
Concentrated liquid formula OR	Up to 823 fl oz reconstituted	Up to 896 fl oz reconstituted
Powdered formula OR	Up to 870 fl oz reconstituted	Up to 960 fl oz reconstituted
Ready-to-feed (RTF) formula	Up to 832 fl oz	Up to 913 fl oz

Food Package II—Infants 6 through 11 months:

	IBE	IBP-<i>mostly</i>	IFF and IBP-<i>some</i>
Concentrated liquid formula OR	N/A	Up to 315 fl oz reconstituted	Up to 630 fl oz reconstituted
Powdered formula OR	N/A	Up to 384 fl oz reconstituted	Up to 696 fl oz reconstituted
Ready-to-feed (RTF) formula	N/A	Up to 338 fl oz	Up to 643 fl oz
Infant cereal	16 oz	8 oz	8 oz
Infant fruits and vegetables ³	128 oz or 64 oz + half CVB or all CVB	128 oz or 64 oz + half CVB or all CVB	128 oz or 64 oz + half CVB or all CVB
Infant meats	40 oz	N/A	N/A

¹ IBP-*mostly* applies to infants that are breastfed and are receiving <14 fl oz of formula from WIC. Powdered formula shall be provided, when available.

² IBP-*some* applies to infants that are breastfed and are receiving ≥14 fl oz of formula from WIC. Formula packages shall be tailored to meet the needs of the IBP up to maximum allowance for IFF. Powdered formula shall be provided, when available.

³ The monthly value of fruit/vegetable CVB varies as it will be adjusted annually for inflation.

Food Package III – Infants with Special Dietary Needs:

Formula Maximum Monthly Allowance (MMA):

Please review Food Package I and Food Package II on page one of this policy for the maximum monthly allowance of formula for infants.

Food Package III – Children or Women with Special Dietary Needs:

Formula/WIC-Eligible Nutritional Maximum Monthly Allowance*:

Concentrated liquid formula	910 fl oz reconstituted
Powdered formula:	910 fl oz reconstituted
Ready-to-feed (RTF) formula	910 fl oz

*In addition, with appropriate documentation, participants with special dietary needs can also be prescribed up to the maximum allowance for Food Package IV-A, IV-B, V-A, V-B, VI, or VII. All packages shall be tailored to meet the needs of the participants. Infant fruits and vegetables can be substituted with the fruit and vegetable cash value benefit and dry infant cereal can be substituted for breakfast cereal if medically

indicated as per Policy and Procedure 3.01. Children ≥ 2 and Women may be provided whole cow's milk and/or whole milk yogurt with CPA approval if medically indicated as per Policy and Procedure 3.01.

Food Package IV-A & IV-B--Children 1 to 4 years:

Fluid milk* OR	A:16 quarts whole fluid milk (1 year old)* B:16 quarts low fat or fat free fluid milk (2-4 year olds)*
Evaporated milk OR	May be substituted for fluid milk at the rate of 16 fl oz per 32 fl oz (quart) fluid milk
Dry milk OR	May be substituted for fluid milk at equal reconstituted rate
Plant-based milk alternative OR	May be substituted for fluid milk on equal fl oz basis
Cheese OR	May be substituted for fluid milk at the rate of 1 lb per 3 quarts of fluid (1lb maximum)
Yogurt** OR	A: Whole or Low Fat (1 year old)** B: Low Fat or Non Fat (2-4 year olds) May be substituted for fluid milk at the rate of 32 oz per 1 quart of fluid (64 oz maximum)
Tofu	May be substitute for milk at the rate of 1 lb per 1 quart of fluid up to the maximum monthly allowance of milk
Eggs OR	1 dozen
Dry beans or peas OR	1 lb
Canned beans or peas OR	64 oz
Nut/Seed butter OR	18 oz
Tofu	1 lb
Cereal (hot or cold)	36 oz
Fruits and vegetables	Varies adjusted annually for inflation.
Whole wheat bread or rolls OR	24 oz
Brown rice, white quinoa, bulgur, buckwheat, and cornmeal, whole wheat/whole grain pasta, soft corn or whole wheat tortillas, or oats	May be substituted for whole wheat bread on equal weight basis
Fruit juice	64 fl oz in lieu of CVB that varies adjusted annually for inflation

Dry beans or peas OR	1 lb
Canned beans or peas OR	May be substituted for dry beans at rate of 64 oz of canned beans for 1 lb dry beans
Nut/Seed butter	18 oz
Canned fish	6 oz

*Food Package IV-A may be provided reduced-fat (2%) milk with CPA approval if medically indicated as per Policy and Procedure 3.01.

**Food Package IV-A may be provided non fat yogurt if medically indicated with CPA approval as per Policy and Procedure 3.01.

Food Package V-A & V-B--Pregnant and Partially Mostly Breastfeeding Women*:

Low fat or fat free fluid milk** OR	22 quarts
Evaporated milk OR	May be substituted for fluid milk at the rate of 16 fl oz per 32 fl oz (quart) fluid milk
Dry milk OR	May be substituted for fluid milk at equal reconstituted rate
Plant-based milk alternative OR	May be substituted for fluid milk on equal fl oz basis
Cheese OR	May be substituted for fluid milk at the rate of 1 lb per 3 quarts of fluid (1lb maximum)
Low Fat or Non Fat Yogurt OR	May be substituted for fluid milk at the rate of 32 oz per 1 quart of fluid (64 oz maximum)
Tofu	May be substituted for milk at the rate of 1 lb per 1 quart of fluid up to the maximum monthly allowance of milk
Eggs OR	1 dozen
Dry beans or peas OR	1 lb
Canned beans or peas OR	64 oz
Nut/Seed butter OR	18 oz
Tofu	1 lb
Cereal (hot or cold)	36 oz
Fruits and vegetables	Varies adjusted annually for inflation
Whole wheat bread or rolls OR	48 oz
Brown rice, white quinoa, bulgur, buckwheat, and cornmeal, whole wheat/whole grain pasta, soft corn or whole wheat tortillas, or oats OR	May be substituted for whole wheat bread on equal weight basis
Fruit juice	64 fl oz in lieu of CVB that varies adjusted annually for inflation
Dry beans or peas OR	1 lb
Canned beans or peas AND	May be substituted for dry beans at rate of 64 oz of canned beans for 1 lb dry beans

Nut/Seed butter	18 oz
Canned fish	A: 10 oz (Pregnant) B: 15 oz (Partially Mostly Breastfeeding)

*Food Package V-A includes women with singleton pregnancies. Food Package V-B includes women breastfeeding mostly and women pregnant with two or more fetuses. Women breastfeeding mostly whose infant's food package does not exceed the maximum monthly formula allowance as outlined in IBP Food Package I and II. Women breastfeeding mostly meeting this requirement are eligible to receive food benefits for up to one year postpartum and breastfeeding support until breastfeeding is discontinued.

**Food Package V-A and V-B may be provided reduced fat (2%) milk with CPA approval if medically indicated as per Policy and Procedure 3.01.

Food Package VI--Postpartum Women*

Low fat or fat free fluid milk** OR	16 quarts
Evaporated milk OR	May be substituted for fluid milk at the rate of 16 fl oz per 32 fl oz (quart) fluid milk
Dry milk OR	May be substituted for fluid milk at equal reconstituted rate
Plant-based milk alternative OR	May be substituted for fluid milk on equal fl oz basis
Cheese OR	May be substituted for fluid milk at the rate of 1 lb per 3 quarts of fluid (1lb maximum)
Low Fat or Non Fat Yogurt OR	May be substituted for fluid milk at the rate of 32 oz per 1 quart of fluid (64 oz maximum)
Tofu	May be substitute for milk at the rate of 1 lb per 1 quart of fluid up to the maximum monthly allowance of milk
Eggs OR	1 dozen
Dry beans or peas OR	1 lb
Canned beans or peas OR	64 oz
Nut/Seed butter OR	18 oz
Tofu	1 lb
Cereal (hot or cold)	36 oz
Whole wheat bread or rolls OR	48 oz
Brown rice, white quinoa, bulgur, buckwheat, and cornmeal, whole wheat/whole grain pasta, soft corn or whole wheat tortillas, or oats	May be substituted for whole wheat bread on equal weight basis
Fruits and vegetables	Varies adjusted annually for inflation.
Fruit Juice	64 fl oz in lieu of CVB that varies adjusted annually for inflation
Dry beans or peas OR	1 lb
Canned beans or peas OR	May be substituted for dry beans at rate of 64 oz of canned beans for 1 lb dry beans

Nut/Seed butter	18 oz
Canned fish	10 oz

*Food Package VI includes non-breastfeeding women and women breastfeeding partially (some) whose infant's food package is more than the maximum infant formula allowances from WIC for partially (mostly) breastfed infants. Women breastfeeding some are eligible to receive food benefits for 6 months postpartum and continue to receive breastfeeding support until breastfeeding is discontinued.

**Food Package VI may be provided reduced fat (2%) milk with CPA approval if medically indicated as per Policy and Procedure 3.01.

Food Package VII--Exclusively Breastfeeding Women*:

Low fat or fat free fluid milk** OR	24 quarts
Evaporated milk OR	May be substituted for fluid milk at the rate of 16 fl oz per 32 fl oz (quart) fluid milk
Dry milk OR	May be substituted for fluid milk at equal reconstituted rate
Plant-based milk alternative OR	May be substituted for fluid milk on equal fl oz basis
Cheese OR	May be substituted for fluid milk at the rate of 1 lb per 3 quarts of fluid (2 lb maximum)
Low fat or Non Fat Yogurt OR	May be substituted for fluid milk at the rate of 32 oz per 1 quart of fluid (64 oz maximum)
Tofu	May be substitute for milk at the rate of 1 lb per 1 quart of fluid up to the maximum monthly allowance of milk
Eggs OR	2 dozen
Dry beans or peas OR	1 lb (2lb maximum)
Canned beans or peas OR	64 oz (128oz maximum)
Nut/Seed butter OR	18 oz (36oz maximum)
Tofu	1 lb (2lb maximum)
Cereal (hot or cold)	36 oz
Fruits and Vegetables	Varies adjusted annually for inflation.
Whole wheat bread or rolls OR	48 oz
Brown Rice, white quinoa, bulgur, buckwheat, and cornmeal, whole wheat/whole grain pasta, soft corn or whole wheat tortillas, or oats	May be substituted for whole wheat bread on equal weight basis
Fruit Juice	64 fl oz in lieu of CVB that varies adjusted annually for inflation
Dry beans or peas OR	1 lb
Canned beans or peas AND	May be substituted for dry beans at rate of 64 oz of canned beans for 1 lb dry beans

Nut/Seed butter	18 oz
Canned fish	20 oz

*Food Package VII includes exclusively breastfeeding women, women mostly breastfeeding multiples from the same pregnancy, and pregnant women who are also exclusively or mostly breastfeeding an infant. Women exclusively breastfeeding multiple infants are prescribed 1.5 times the maximum allowance.

**Food Package VII may be provided reduced fat (2%) milk with CPA approval if medically indicated as per Policy and Procedure 3.01.

**MARYLAND DEPARTMENT OF HEALTH
WIC PROGRAM
POLICY AND PROCEDURE MANUAL**

**Policy and Procedure Number: 3.01
Effective Date: October 1, 1995
Revised Date: June 11, 2026**

SECTION: FOOD PACKAGES

SUBJECT: Prescription of Food Packages

A. Policy

A Competent Professional Authority (CPA) shall prescribe supplemental foods in quantities appropriate for the participant's WIC category and nutritional risk, following the State guidelines for usual and tailored food packages. The CPA may also customize food packages, when appropriate, to provide participants with combinations of infant formula /medical nutritional along with other WIC foods as requested via prescription from a healthcare provider (HCP)¹ (see Local Agency Policy and Procedures 3.02 and 3.03). Competent Paraprofessional Authorities (CPPAs) may prescribe usual and tailored food packages under the supervision of a CPA (see Policy and Procedure 7.60).

B1. General Procedure

1. All staff will receive initial training in prescription of food packages during new employee training. Additional training related to exempt infant formulas and WIC-eligible nutritionals is provided during the Maryland WIC Program's CPA Training (see Policy and Procedure 7.66).
2. A nutrition history shall be taken on each WIC applicant during certification to obtain pertinent information such as typical eating patterns, food allergies, food preferences, availability of a safe water supply, access to refrigeration, etc. This information shall be used to tailor the food package to an individual participant's needs.
3. Local agency staff shall determine which food package is appropriate to prescribe by choosing from the options available. Staff are encouraged to tailor food packages to participant preferences and needs by determining the types and amounts of milk, cheese, and yogurt each participant prefers and prescribing packages that do not contain foods to which the participant is allergic. A food package cannot be prescribed for more than

¹ A **health care provider (HCP)** is defined as a practitioner with prescriptive authority, i.e., physician, certified nurse practitioner, or physician's assistant.

the maximum allowed quantity, nor can a quantity that is less than the maximum be specified for all categories of participants (i.e. blanket tailoring).

4. Homeless and migrant participants and those with limited refrigeration availability may have a food package tailored to meet their needs.

B2. Breastfeeding Dyads Procedure

1. The food benefits for a lactating participant are dependent on the benefit provided to the respective infant. Thus, the breastfeeding dyad must be considered together when assigning the benefits for each.
2. To facilitate exclusive breastfeeding, it is recommended as best practice for local agencies to follow up with all breastfeeding participants (exclusive, mostly, and some) during the first month of life to assess how well breastfeeding is going, provide breastfeeding support and adjust food packages as appropriate. Breastfeeding dyads who receive exclusively breastfeeding food benefits packages should continue to do so for at least the first month of the infant's life. Any requested food package changes should generally be implemented after that time.
3. Participants who combination feed and opt to receive formula for their infants will receive smaller food packages for the mothers.
4. Breastfed Infants
 - a. An infant whose only milk feeding is breastmilk is exclusively breastfed and shall receive no infant formula.
 - b. When an infant is partially breastfed, staff shall follow best practice and assess the situation, strongly encouraging all breastfeeding families to exclusively breastfeed especially in the first month of life to promote optimal milk supply, effective breastfeeding skills, and effective breastmilk transfer.
 - i. Infants less than one month old and already receiving some supplemental infant formula shall be assessed to determine the reason for the supplement.
 - ii. As a best practice, those without a breastfeeding complication noted in Policy and Procedure 5.09 will be provided with three months of the exclusive breastfeeding food package and breastfeeding support expecting that breastmilk supply will improve with support, eliminating the need for the infant formula supplement. Alternatively, if the caregiver insists on receiving infant formula during the infant's

first month of life, they can receive the formula food package for the infant, tailored to provide the amount of formula that most closely matches the amount consumed.

- iii. If needed due to a specific breastfeeding complication a minimal amount of powdered infant formula to meet supplemental needs shall be provided. Medical reasons when issuance of one or two cans of formula during the first month of life may be helpful (see Policy and Procedure 5.09):
 - 1. BE or BP-Mostly with underdeveloped glandular breast tissue or breast surgery with incisions near the nipple
 - 2. Premature infant receiving breast milk mixed with formula powder to increase calories
 - 3. Infant with inborn error of metabolism requiring a limitation in the daily amount of breastfeeding – refer to Policy and Procedure 3.06: Medicaid Payment for Exempt (“Special”) Infant Formula and Medical Foods
 - 4. Infant with weak or ineffective suck
 - 5. Infant with difficulty latching onto the breast
 - 6. Infant with Down syndrome or other neurological disorder that affects breastfeeding
 - 7. Infant with cleft lip/palate or other congenital condition that affects breastfeeding

5. Breastfeeding Women

a. All breastfeeding women who meet the USDA/Maryland WIC definition of breastfeeding should be prescribed a breastfeeding food package as follows:

- i. An enhanced food package for breastfeeding women BE (Food Package VII) shall be prescribed to:
 - 1. Exclusively breastfeeding women of singleton infants who receive no infant formula from the WIC Program.
 - 2. Women partially breastfeeding at least two mostly breastfed infants (receiving up to 14 oz. formula/day per infant, when reconstituted). See attachment 3.01A for further guidance.
 - 3. A mother of multiples when at least one infant is exclusively breastfeeding.
 - 4. Partial-Mostly (BP-Mostly) breastfeeding women whose infants are on WIC and receive no infant formula from the WIC Program.
 - 5. Breastfeeding women who are also pregnant and exclusively

or mostly breastfeeding their current infant.

6. A food package equal to 1.5 times the enhanced food package for breastfeeding women (BE) shall be prescribed to women exclusively breastfeeding more than one infant.

- ii. Breastfeeding women whose infants are mostly breastfed (receiving up to 14 oz. formula/day, when reconstituted, for their infants) should be prescribed a BPMostly/PG (Twins or more) (Food Package V-B) tailored food package.
- iii. Women who breastfeed at least once a day and receive more than 14 oz. formula/day (when reconstituted) for their infants should be prescribed a postpartum woman food package BPS/WPP (Food Package VI) if their infants are less than six months old. Those with infants > six months old should be prescribed *Breastfeeding Support for Mom*. They do not receive food benefits but remain active WIC participants, receiving the benefit of breastfeeding support.

B3. CPA and CPPA Tailoring Food Package (IV-A, IV-B, V-A, V-B, VI, & VII) Procedure

1. The CPA/CPPA can tailor food packages to substitute food items without need for written authorization from HCP or requirement for documentation in the participant record.
2. Substitutions include:
 - a. Plant-Based Milk Alternatives in lieu of cow's milk
 - i. Soy Beverage
 1. Issuance based on participant preference
 - ii. Other plant-based milk alternatives (i.e. oat or pea based)
 1. Appropriate reason for issuance: both milk & soy allergy
 - b. Sunflower Seed Butter in lieu of legumes
 - i. Appropriate reason for issuance: peanut allergy
3. For additional substitution options see policy 3.00A

B4. CPA Tailoring Food Package (IV-A, IV-B, V-A, V-B, VI, & VII) Procedure

1. The CPA shall assign certain food items based on individual nutrition assessment and consultation with the HCP, as necessary. Written authorization from HCP is not required but reason for issuance shall be documented in the participant record.
2. Substitutions include:
 - a. Reduced fat (2%) Milk for children ≥ 2 years old and women (Food Packages IV-B, V-A, V-B, VI, VII) who need increased calories.
 - i. Appropriate reasons for issuance include the following:
 1. Underweight;

2. Unintended weight loss in children (< 85% BMI for age before weight loss);
 3. Failure to Thrive;
 4. Maternal weight loss or inadequate weight gain in the 2nd or 3rd trimesters;
 5. Total Maternal weight loss of $\geq 5\%$ of pre-pregnancy weight in the 1st trimester.
- b. Reduced fat (2%) Milk and/or Non Fat Yogurt for one-year-old children (Food Package IV-A) who need reduced calories due to overweight/obese.

B5. CPA Food Package III Procedure

1. Federal WIC regulations allow certain food items to be given to participants when prescribed by the HCP as part of Food Package III which contains infant formula, exempt infant formula, and/or WIC-eligible nutritional for qualifying medical conditions. The HCP may authorize the WIC CPA to determine the need for tailored food items by checking “WIC professional may determine WIC foods and amounts” on the Maryland WIC Medical Documentation Form, or by indicating the same on a medical prescription.² A new prescription shall be obtained at each certification/recertification unless the prescription has been written within 60 calendar days of that appointment (see Policy and Procedure 3.03).
2. Requests for tailored food items shall be documented in the participant record under food prescription notes in the WIC management information system. The medical documentation form or prescription note shall be scanned into the participant’s record. The paper copy shall be kept on file at the Local Agency for a minimum of 6 months.
3. Food Package III recipients are eligible to receive all the supplemental foods for which they would have qualified in the absence of their special medical needs. The CPA must tailor the food package to provide the type and amount of food most appropriate for the participant based on professional judgment, assessed need, and the health care provider’s medical documentation. When the HCP checks “yes” that the patient does have food restrictions in section 5 of the medical documentation form, the food/foods listed by HCP shall be removed from the participants’ food package.
4. Substitutions include:
 - a. Whole Milk and/or Whole Yogurt for children ≥ 2 years old and women
 - i. Participants issued whole milk and/or whole yogurt should be

² Medical Documentation Forms from other WIC Programs accepted if the form contains all information listed in P&P 3.02 B.2. a.

- monitored closely to prevent excessive weight gain.
- ii. Appropriate reasons for issuance include the following:
 - 1. Underweight;
 - 2. Unintended weight loss in children (< 85% BMI for age before weight loss);
 - 3. Failure to Thrive;
 - 4. Maternal weight loss or inadequate weight gain in the 2nd or 3rd trimesters;
 - 5. Total Maternal weight loss of $\geq 5\%$ of pre-pregnancy weight in the 1st trimester.
- b. Reduced Fat (2%) Milk and/or Non Fat Yogurt for one-year-old children
 - i. Appropriate reasons for issuance include the following: Overweight/obese
- c. Plant-Based Milk Alternatives and/or Tofu in lieu of cow's milk for women and children
 - i. Soy Beverage
 - 1. Issuance based on participant preference, if appropriate, given their special medical needs.
 - ii. Appropriate reasons for issuance of other plant-based milk alternatives (i.e. oat or pea based)
 - 1. Both cow's milk and soy allergies
- d. Plant-Based Alternatives (beans, nut/seed butter, or tofu) in lieu of eggs for children and women
 - i. Beans, peanut butter, or tofu may be substituted for an egg allergy
 - ii. Sunflower Seed Butter may be substituted for both egg and peanut allergies
- e. Baby Food Fruits and Vegetables and/or Baby Food Cereal for women and children
 - i. Baby Food Fruits & Vegetables in lieu of fruit and vegetable monetary benefit
 - ii. Baby Food Cereal in lieu of breakfast cereal, 32 ounces of baby food cereal in lieu of 36 ounces of breakfast cereal.
 - 1. Appropriate reason for issuance:
 - a. Prematurity;
 - b. Dysphagia;
 - c. Developmental Delays;
 - d. Swallowing Disorders.

Attachments:

3.01A Assigning Food Packages to Breastfeeding Dyads

References:

1. 7 CFR 246.10 (April 18, 2024) Table 2 to Paragraph (e)(10) Food Packages

IV, V, VI, and VII: Maximum Monthly Allowances (MMA) of Supplemental Foods for Children and Women

2. 7 CFR 246.10 (April 18, 2024) Table 3 to Paragraph (e)(11) Food Package III: Maximum Monthly Allowances (MMA) of Supplemental Foods for Children and Women with Qualifying Conditions

Revisions:

10/07	Removed reference to the State Nutrition Unit being able to create a more customized food package. We have customized food packages by making a large number of choices available via the standard drop-down.
10/09	Added statement in Policy section that CPAs may customize packages to provide combinations of formulas and other WIC foods based on prescription from health care provider. Revised 1st paragraph in Procedure section pertaining to CPA and CPPA training related to food package prescription. Added statement that whole cow's milk may be provided to children over age two with a health care provider's request and verification by the CPA of specific growth issues. Specified required documentation by the CPA of the whole cow's milk request prior to issuance.
01/10	Updated to allow whole milk for women with medical justification. Revised attachments 3.01A, 3.01B & 3.00E to include whole milk packages for women and to reflect the increased monetary value of FVB to \$10.00.
10/10	B.1. Changed WIC WISE 1 to WIC WISE training and Nutrition Services Coordinator to Training Services Coordinator. Attachment 3.01A. Changed title to Food Packages for Exclusively Breastfeeding Women (BE), Women Breastfeeding Mostly (at least 2 infants), and Women Pregnant with Multiples. Attachments 3.01A-F. Changed food item descriptors from lactose-reduced to lactose-reduced/free milk.
01/11	Revised section B (6) of policy to include required procedures for issuance of soy products. Updated attachments 3.01 A-F to include options for soy beverage and tofu food package combinations.
10/11	Updated attachments 3.01A-F to include kosher cheese/soy food package options. Also added WPP Lactose-Reduced, (2.5 Gal) 1 # Cheese package.
10/12	Revised attachments 3.01A-E: Added new, customizable packages that eliminate quart-size containers by providing an additional half gallon of milk every other month.
10/14	A. Policy: Added reference to Policy and Procedure 3.02. Changed Certification Policy and Procedure 2.01 to Policy and Procedure 7.60. B. Procedure: Changed "medical foods" to "WIC-eligible nutritionals." Changed CPA Training to New CPA Training; deleted direction to contact Training Center to enroll staff in this training and replaced with reference to Policy and Procedure 7.60. Updated to allow reduced milk

	(2%) milk for a one-year-old child, in accordance with federal WIC regulations. Updated to allow CPA determination of the need for whole milk for a woman or child ≥ 2 years old, reduced-fat (2%) milk for a one-year-old child, or soy beverage and/or tofu for children ≥ 1 year of age, when allowed by federal WIC regulations, based on an individual nutrition assessment and consultation with the health care provider as necessary. Deleted B.8 and added it to Policy and Procedure 6.01A under Client Services. Revised attachments 3.01C& 3.01D to reflect the increased monetary value of children's FVC to \$8.00. Updated References.
06/15	Clarified the procedure for issuing supplemental foods in Food Package III and to reflect the language in the revised Maryland WIC Medical Documentation Form. Added a section on the option of replacing the fruit and vegetable benefit with infant fruits and vegetables for participants receiving Food Package III, when allowed by federal WIC regulations, based on an individual nutrition assessment and consultation with the health care provider. Appropriate reasons were listed for infant foods for women and children including prematurity; dysphagia; developmental delays and swallowing disorders.
10/15	3.01 Added that requests for whole milk and/or infant fruits and vegetables in Food Package III shall be scanned in the MIS system and the original request shall be kept on file at the Local Agency for a minimum of six months. Stipulated that all whole milk and or infant fruit and vegetable requests shall also be documented in the participant's record under food prescription notes. Added unintended weight loss in children ($< 85\%$ BMI for age before weight loss); maternal weight loss or inadequate weight gain in the 2nd or 3rd trimesters; and replaced "maternal weight loss during pregnancy" with total maternal weight loss of $\geq 5\%$ of pre-pregnancy weight in the 1st trimester as indications for whole milk in Food Package III. Added guidance that participants issued whole milk should be monitored closely to prevent excessive weight gain. Vegetarian diet was added as an indication for issuing a soy beverage and/or tofu. 3.01 A, B, C, D, E & F. Tables were reordered so that the standard food package was listed first. Added "Examples of" to the title and an * to "Please contact the Nutrition Services Unit for questions on food packages". The cash value benefit amounts for women were updated to reflect the change from \$10.00 to \$11.00. Breastfeeding Exclusively with Multiples cash value benefit amounts were updated to reflect the odd/even packages that alternate between \$16.00 and \$17.00.
6/17	Updated policy based on eWIC terminology. Attachment 3.01 A – F removed as they reflect food packages on paper checks not electronic benefits.
10/18	Updated policy to include yogurt. Removed and/or cheese from 7.a. soy beverage and/or tofu replace milk only.

07/20	Clarified language for whole and 2% milk issuance. Added Medical Documentation Forms from other WIC Programs accepted if the form contains all information listed in P&P 3.02 B. 2. a.
07/23	Moved assigning food packages for breastfeeding dyads section from policy 5.09 to 3.01. Moved attachment 5.09B and renamed 3.01A.
2/25	Revised 3.01 Procedure 8b to specify CPPA may assign soy beverage and to include “plant-based products”. Revised Procedure 9 to include “plant-based products”. Removed 8c.
7/25	Revised to align with updates for food package changes allowing partially breastfed infants to receive “mostly” food package benefits beginning in the first month of life if participant/family insists. Revised 3.01 A to incorporate information on assigning food packages in the first month of life within 3.01; Adjusted 3.01A so that second and third tables are renumbered as first and second tables.
01/26	3.01 Added new procedure sections B2, B3, B4, & B5. B1. 4. Added that food package can be tailored. Added whole fat yogurt for women and children ≥ 2 years old. Changed references to Food Package IV to IV-A for 1 year old children and IV-B for children ≥ 2 years old. Changed references to Food Package V to V-A (Pregnant) and V-B (Breastfeeding Partially Mostly). Added whole or non fat yogurt to options for 1 year old. The term “soy beverage” was replaced by “plant-based milk alternative”. Combined women and children for plant-based milk alternatives and tofu substitution for milk. Added reason for issuance of plant-based milk alternatives other than soy. Added plant-based alternatives in lieu of eggs and sunflower seed butter. Added reference to policy 3.00A for additional substitution options. 3.01A Added new food package names BPMostly/PG (twins or more) and BPS/WPP
6/26	Revised section B5 adding that if the HCP checks “yes” in section 5 of medical documentation form the food/foods shall be removed from the package. Revised section B5 to remove that CPA shall also assign if HCP checks, “whole milk for a woman or child”, “issue plant-based milk alternative and/or tofu”, and “request infant foods for a woman or child” to match revisions to medical documentation form.

Table 1. Breastfeeding Multiple Infants

	Amount of Breastfeeding	Category		Food Package	
		Infant	Woman	Infant	Woman
Baby 1	Exclusive	IBE	BE	IBE	BEM*
Baby 2	Exclusive	IBE		IBE	
Baby 1	Exclusive	IBE	BE	IBE	BE
Baby 2	Mostly	IBP		IBP Mostly	
Baby 1	Exclusive	IBE	BE	IBE	BE
Baby 2	Some	IBP		IFF/IBP Some	
Baby 1	Mostly	IBP	BP	IBP Mostly	BE
Baby 2	Mostly	IBP		IBP Mostly	
Baby 1	Mostly	IBP	BP	IBP Mostly	BP Mostly/ PG (twins or more)
Baby 2	Some	IBP		IFF/IBP Some	
Baby 1	Some	IBP	BP	IFF/IBP Some	BPS/WPP
Baby 2	Some	IBP		IFF/IBP Some	

Note: As long as a participant is providing her own breastmilk for two infants who meet the criteria specified, the woman category and food package indicated apply.

* 1.5 times the BE food package

Breastfeeding While Pregnant

Women who are breastfeeding an infant during a subsequent pregnancy may be entitled to get a larger food package. Table 2 shows the food packages that pregnant women may receive if they are breastfeeding during a subsequent pregnancy.

Table 2. Breastfeeding While Pregnant

Amount of Breastfeeding	Category		Food Package	
	Infant	Woman	Infant	Woman
Exclusive	IBE	PG	IBE	BE
Mostly	IBP	PG	IBP Mostly	BE
Some	IBP	PG	IFF/IBP Some	PG

**MARYLAND DEPARTMENT OF HEALTH
WIC PROGRAM
POLICY AND PROCEDURE MANUAL**

**Policy and Procedure Number: 3.02
Effective Date: July 15, 1998
Revised Date: June 11, 2026**

SECTION: FOOD PACKAGES

SUBJECT: Provision of Formulas for Infants

A. Policy

1. Authorized Infant Formulas:

Federal Regulations require that all WIC authorized infant formulas must:

- a. meet **the definition** for an infant formula as stated in the Federal Food, Drug, and Cosmetic Act;
- b. meet **the requirements** for an infant formula under the Federal Food, Drug and Cosmetic Act;
- c. meet **the requirements** for an infant formula under the 7 Code of Federal Regulations, Chapter Two, Part 246:
 - i. provide at least 1.5 mg iron/100 kilocalories (10 mg iron per liter) at standard dilution;
 - ii. provide at least 20 kilocalories per fluid ounce (67 kilocalories per 100 milliliters) at standard dilution.
 - iii. not require the addition of any ingredients other than water prior to being served in a liquid state.

2. Unauthorized Infant Formulas:

The following formulas are not Maryland WIC authorized and shall not be provided to Maryland WIC participants:

- a. Non-contract infant formulas, i.e., Enfamil Newborn, Enfamil Infant, Enfamil Prosobee, Enfamil Gentlease, Good Start Dr. Brown's Soy-ease Pro, Good Start Dr. Brown's Gentle Pro, Good Start Dr. Brown's Soothe Pro and private label infant formulas.
- b. Low-calorie infant formulas.
- c. Cow's milk or Goat's milk.

- d. Formulas designed for less than one month's use, as per manufacturer guidelines.
- e. Modular products, e.g., Beneprotein, Duocal, Polycal, Resource Thicken-Up.

3. Contract Infant Formula:

Contract infant formula means all infant formulas produced by the manufacturer awarded the infant formula cost containment contract. Federal WIC Regulations require that all WIC programs have a cost-containment contract for milk-based and soy-based infant formulas.

The primary standard contract infant formulas in Maryland are:

	Type	Forms	WIC Size
Similac Advance <i>Abbott Nutrition</i>	Milk-protein based	Powder	12.4 oz.
		Concentrate	13 fl. oz.
		Ready-to-Feed*	32 fl. oz.
Similac Soy Isomil <i>Abbott Nutrition</i>	Soy-protein based Milk-free Lactose-free	Powder	12.4 oz.
		Concentrate	13 fl. oz.
		Ready-to-Feed*	32 fl. oz.

*Ready-to-feed is only issued in rare circumstances, please see 5b and c, below.

The secondary contract infant formulas in Maryland are:

Similac Sensitive <i>Abbott Nutrition</i>	Milk-protein based Lactose-reduced	Powder	12.5 oz.
		Concentrate	N/A
		Ready-to-Feed*	32 fl. oz.
Similac Gentle Comfort <i>Abbott Nutrition</i>	Milk-protein as whey protein hydrolysate Lactose-reduced	Powder	12.6 oz.
		Concentrate	N/A
		Ready-to-Feed*	N/A

*Ready-to-feed is only issued in rare circumstances, please see 5b and c, below.

- a. Participants requesting a secondary contract infant formula must have first tried one of the primary standard infant formulas before staff can issue a secondary contract infant formula. The CPPA can accept a verbal statement from the participant that the infant has tried either Similac Advance or Similac Soy Isomil (whether or not that formula was issued by Maryland WIC) and document this in WOW. If a participant refuses to try one of the primary standard contract infant formulas, they must provide a Medical Documentation Form from a HCP with an appropriate diagnosis to issue one of the secondary contract infant formulas. The CPA must approve this request and complete a Food prescription note in WOW. Proper issuance and documentation shall be monitored and will be included in management evaluations.

4. Exempt Infant Formulas:

An exempt infant formula is an infant formula that is not eligible for the cost-containment

contract but may be authorized by Maryland WIC. These formulas are designed for specific medical conditions. Exempt infant formulas shall only be issued when prescribed by a HCP on the Maryland WIC Medical Documentation Form or prescription note for a specific qualifying medical condition (please see 6a and b).

¹

All requests are subject to CPA approval.

- a. Exempt Infant Formulas must meet the requirements and regulations for an exempt infant formula under the Federal Food, Drug and Cosmetic Act.
- b. Exempt infant formulas shall only be issued as part of **Food Package III** to infants with **documented qualifying medical conditions** (see 6a for qualifying conditions).
- c. The following **are EXAMPLES of Maryland WIC Authorized Exempt-Infant Formulas** and are not inclusive of all the exempt infant formulas that are currently authorized. Please contact the State Nutrition and Breastfeeding Services Unit with questions.

1. Alfamino Infant
2. Alimentum
3. EleCare for Infants
4. EleCare Junior
5. EnfaCare
6. Enfamil 24
7. Enfamil AR
8. Enfamil Premature 20, 24, and 30 Cal
9. EnfaPort
10. Extensive HA
11. Neocate Infant
12. Neocate Junior
13. NeoSure
14. Nutramigen
15. Pregestimil
16. PurAmino
17. Similac 60:40
18. Similac Special Care High Protein 24
19. Similac Special Care with Iron 20, 24, and 30

5. Quantities and Types:

- a. Federal WIC Regulations define the maximum monthly allowance (MMA) as the maximum amount of infant formula WIC shall provide based on the infant's age and

¹ Medical Documentation Forms from other WIC Programs accepted if the form contains all information listed in B.2.a.

category (see Attachment 3.02B for the Maximum Monthly Allowances). The type of infant formula (concentrate, powder, or ready-to-feed [RTF]) must conform to Federal WIC Regulations for Food Packages I, II and III (see Policy and Procedure 3.00 A).

- b. WIC Regulations state that breastfed infants who receive supplemental infant formula, shall receive powdered formula, when available. These regulations also require that breastfed infants receiving infant formula receive quantities tailored to the amount that most closely meets what is consumed when the reconstituted MMA exceeds this volume. A breastfed infant that is less than one month old shall be assessed to determine the reason for receiving infant formula. Best practice is that newborns infants are exclusively breastfed with the goal being to build up the milk supply so that no formula is needed. Refer to Policy and Procedure 3.01 section B.4.a.
- c. WIC Regulations state that ready-to-feed (RTF) formula may be authorized only by a CPA after consultation with health care provider. The CPA shall be responsible for making the determination that RTF is appropriate and documenting the rationale for issuing RTF formula in the participant's record under the Food Prescription Notes screen.

1. One of the following conditions must be met and documented on a medical documentation form to issue RTF:

- i. the formula is only available in the RTF form;
- ii. caregivers have an unsanitary or restricted water supply;
- iii. there is poor refrigeration; or
- iv. the caregiver may have difficulty in correctly diluting concentrated liquid or powdered formula.

6. Qualifying Conditions for Food Package III for Infants

Infants issued Food Package III must have a documented qualifying condition as determined by a HCP. Food Package III shall only be issued to infants authorized to receive an exempt infant formula because the use of contract formula is precluded, restricted, or inadequate to address their specific nutritional needs. **All requests are subject to approval by the CPA.**

a. Qualifying conditions include, but are not limited to:

- i. premature birth;
- ii. low birth weight;
- iii. failure to thrive;
- iv. inborn errors of metabolism;
- v. gastrointestinal disorders;
- vi. malabsorptive syndromes;
- vii. immune system disorders;
- viii. severe food allergies that require elemental formulas;
- ix. life threatening disorders, diseases and medical conditions that impair

ingestion, digestion, absorption or the utilization of nutrients that could adversely affect the participant's nutritional status.

- b. Federal Regulations prohibit the issuance of exempt infant formulas for **non-qualifying medical conditions. Food Package III shall NOT be issued to infants whose only condition is:**
 - i. a diagnosed formula intolerance or food allergy to lactose, sucrose, milk protein or soy protein that does not require the use of an exempt infant formula;
 - ii. non-specific formula or food intolerance;
 - iii. non-specific symptoms or conditions such as intolerance, constipation, gas, fussiness, colic or spit-up.

B. Procedure

1. Issuing Contract Formulas (Food Package I and II)

Either the milk or soy-based contract formula shall be provided unless medically contraindicated. Similac Soy Isomil may be provided as an alternative to Similac Advance when a vegetarian product, a lactose-free product, or a milk protein-free product is requested. Policy and Procedure 3.01 shall be followed when choosing the optimal infant food package.

- a. The maximum monthly allowance (MMA) of formula shall be provided in the food package for all non-breastfeeding infants (see attachment 3.02B for the Maximum Monthly Allowance by age and category).
- b. Partially breastfed infants shall be given powdered formula (when available) tailored to a volume that at least meets and most closely matches the volume of infant formula consumed, up to the MMA per WIC regulations.
- c. The justification for ready-to-feed formula shall be documented by the CPA in the Food Prescription Notes screen in the comment section.

2. Issuing Exempt Infant Formulas (Food Package III)

Written or faxed documentation by a HCP for the request must be provided on the Maryland WIC Medical Documentation Form or on a prescription note.

²

A new prescription shall be obtained at each certification/recertification unless the prescription has been written within 60 calendar days of that appointment. Policy and Procedure 3.01 shall be followed when choosing the optimal formula food package. **All Exempt Infant Formula requests are subject to approval by the Local Agency CPA.**

² Medical Documentation Forms from other WIC Programs accepted if the form contains all information listed in B.2.a.

- a. At minimum, the following information **must be included** on the medical documentation form or prescription note:

Section One	The name of the participant
	The birth date of the participant
Section Two	The medical diagnosis warranting the requested formula
Section Three	The brand name of the formula prescribed
	Calorie level needed, if other than the standard dilution
	Quantity requested per day, if less than the MMA
Section Four	Duration the formula is medically required
Section Five	WIC food requests or restrictions or HCP authorization to allow the WIC CPA to determine the appropriate supplemental foods
Section Six	Date of prescription
	HCP contact information
	Signature or signature stamp of the HCP and their credentials.

- b. The following information **may be included** on the medical documentation form or prescription note;

Section One	Weight and date measured
	Length/Height and date measured
	Hemoglobin/Hematocrit and date measured
Section Two	The symptoms experienced by the infant related to the medical diagnosis

- c. The CPA may not issue the exempt infant formula for longer than the duration requested by the HCP. If required by policy or deemed appropriate by the CPA's nutrition assessment, the CPA may require the HCP to reassess the medical necessity of the formula sooner than the requested duration on the Medical Documentation Form or food prescription note.
- d. The maximum monthly allowance of formula (determined by age of infant) shall be provided in the food package for all non-breastfeeding infants. Partially breastfed infants shall be given powdered formula at a volume that at least meets and most closely matches the volume of infant formula consumed, up to the maximum monthly allowance per WIC regulations.
- e. The justification for ready-to-feed formula shall be documented by the CPA in the Food Prescription Notes screen in the comments section.

3. Food Package III Assignment

Policy and Procedure 3.01 shall be followed when choosing the optimal formula food package. **All Exempt Infant Formula requests are subject to approval by the Local Agency CPA.**

4. Incomplete Medical Documentation:

Formula shall not be issued until all required information is obtained and documented.

- a. If the prescription is **only missing the duration requested** and the HCP is unavailable, one month's allotment may be provided until the length of time is obtained from the HCP and documented in the comment section of the Food Prescription Note.
- b. **If the WIC Food Requests section is incomplete** on the Medical Documentation Form or not specified on the prescription note, a "formula only" package shall be issued at 6 months of age. If the participant is in a women or child category, the WIC eligible nutritional shall be the only item provided in the food package until confirmation from the HCP can be obtained. Authorization for baby foods must be documented before benefits for infant foods can be issued.
- c. **If the written prescription is missing other required information or requires further clarification from the Health Care Provider (e.g., medical diagnosis, illegible HCP name/signature, missing HCP credentials))** – and obtaining a new, written prescription would cause undue hardship to the participant or delay in the provision of formula that would place the participant at nutritional risk – **documentation of a phone contact with the health care provider or HCP's office staff will suffice.** Documentation of the phone contact must include: the name of the staff making the call to the Health Care Provider; name of the HCP; name of the person providing the information (if not speaking directly with the HCP); date of the phone call; and all the required information about the formula.

5. Issuing Non-Contract Infant Formula:

In rare instances, non-contract infant formulas may be issued through the State Nutrition and Breastfeeding Services Unit with medical documentation from the HCP, either on the Maryland WIC Medical Documentation form³ or prescription note with a medical diagnosis that warrants the need for a non-contract formula.

Non-contract formulas may only be issued when a contract formula would place the infant at medical risk because of a diagnosed medical condition. Requests require the same information as listed in Procedure 2.a and are subject to approval by a State Nutritionist.

6. Documentation of Formula Requests in the Participant Record:

- a. Prior to issuance, the CPA shall:
 - i. evaluate, pend, approve and authorize, or not approve, all requests for products other than the contract infant formulas;
 - ii. notify the HCP when any modifications to original requests are made, if appropriate.

³ Medical Documentation Forms from other WIC Programs accepted if the form contains all information listed in B.2.a.

- b. All Medical Documentation Forms or food prescription notes shall be scanned into the management information system and documented by the CPA in the Food Prescription Note screen at the time of issuance.
- c. The name of the CPA who evaluated the need for the formula and authorized its issuance must be documented in the Food Prescription Note screen of the management information system.
- d. The paper documentation (Medical Documentation Form or food prescription note) shall be kept on file at the local agency for a minimum of six months.

Attachment(s):

- 3.02A Standard Dilution Rates and Calorie Levels for Select Infant Formulas
- 3.02B Maximum Monthly Allowance of Infant Formulas by Category and Age
- 3.02C Maryland WIC Medical Documentation Form

References:

1. Federal Drug Administration. (1986) Federal Food, Drug, and Cosmetic Act, Amended, 21 U.S.C. 321(z); Section 201(z)
2. Federal Drug Administration. (1986) Federal Food, Drug and Cosmetic Act, Section 412, as amended (21 U.S.C. 350a) and the regulations at 21 CFR parts 106 and 107;
3. USDA (1-1-2015) 7 Code of Federal Regulations, Chapter ii, Special Supplemental Nutrition Program for Women, Infants, and Children.
4. USDA, Food and Nutrition Services (3-14-2014) 7 CFR 246 Special Supplemental Nutrition Program for Women, Infants, and Children (WIC): Revisions in the Food Packages - Final Rule.
5. Abbott Nutrition for Health Care Professionals. Similac Advance 20. Accessed March 22, 2016 <http://abbottnutrition.com/brands/products/similac-advance-20>
6. Nestle for Medical Professionals. Gerber Good Start Soy. March 22, 2016. <http://medical.gerber.com/products/formulas/good-start-soy>

Revisions:

- 06/17 Updated policy based on eWIC terminology.
- 02/19 Revised section A.3. to reflect the current soy contract infant formula, Similac Soy Isomil and change in container size.
Revised 3.02C to clarify section 3: soy beverage and/or tofu can only replace milk and WIC foods and amounts without changes to the standard food package.
Revised section 4 to expand examples of Health Care Providers with prescriptive authority. Revised page 2 to correct amounts of milk and cheese in Core food packages, added pasta and yogurt and \$4 cash value benefit option for infants 9 – 11 months. Update child cash value benefit to \$9.
- 11/20 Similac Sensitive and Total Comfort were moved to the contract formula table due to reformulation to 20 cal/oz. Added Medical Documentation forms from

other WIC Programs accepted if the form contains all information listed in B.2.a. Updated 3.02C Section 3 Whole milk for a woman/child >2 years. (May only be issued with a formula/WIC-eligible nutritional).

- 10/21 Added clarification under Types and Quantities that breastfed infants must receive the powder form of infant formula and it must be tailored to the amount consumed. Added clarification on issuance of supplemental formula to partially breastfed infants. Added common diagnosis to Section 2 of 3.02C Page 1.
- 02/23 Removed A.4. Special Issue Contract Formulas and all references in the policy to special issue contract formulas as a result of Abbott Nutrition discontinuing production of Similac for Spit-Up. Clarified language related to issuing RTF formulas.
- 04/24 Added GER/GERD to 3.02 C, page 1, section 2. Removed "Check all that apply" from 3.02, page 1, section 3. Replaced specific dollar amount with FV benefit on 3.02C Page 2.
- 10/24 Removed benefit tables from 3.02C page 2 and replaced with additional contact information for the local agencies.
- 02/25 Revised 3.02, 3. Contract Infant Formulas; changed the chart to two charts, one for primary standard contract infant formulas and one for secondary standard contract infant formulas. Added 3 a. to describe the process staff must follow to issue a secondary contract infant formula. B.2.d corrected to incorporate new food package rules. 3.02A: updated Good Start formula name and removed concentrate and RTF options; removed Similac for Spit-Up. 3.02C, page one: removed Similac Sensitive and Similac Total Comfort.
- 07/25 Revised B, 2d. to include allowance of formula in the first month of life for parents who insist on receiving formula, with the BF parent receiving the food package for their category, based on the amount of formula provided to the infant. Revised B, 4c. to clarify the procedure for missing and illegible information on Medical Documentation Forms.
- 01/26 Revised A3: Changed Similac Total Comfort to Similac Gentle Comfort. 3.02A: Changed Similac Total Comfort to Similac Gentle Comfort in both standard dilutions charts.
- 06/26 Revised A4c: Updated formula name #10 in chart. Revised B2a: Changed section numbers on the chart and wording in 4b to match revisions to 3.02C. Attachment C received significant revisions to simplify the document.

Standard Dilutions and Calorie Levels for Select WIC Authorized Infant Formulas

The products listed in this table are select examples of Maryland WIC Authorized infant formulas. This list is not inclusive of all products or forms of products authorized. Please contact the state office with questions regarding authorized formulas. All Infant Formula Requests are subject to Local Agency CPA approval.

- **Calorie Level at Standard Dilution:** is the reconstituted calorie level per fluid ounce as stated in the manufacturer instructions for powder and liquid concentrate forms of infant formula. Any variation from the standard dilution must be under the supervision of the participant's Health Care Provider.
- **Standard Calorie Level:** is the calorie level per fluid ounce for ready-to-feed formulas. Ready-to-feed formulas should NEVER be diluted with water.

Key:	PWD: Powder	LCN: Liquid Concentrate	RTF: Ready-to-Feed
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Calorie Level at Standard Dilution for Select Powder and Liquid Concentrate Infant Formulas		
Product Name	Form	Calorie Level at Standard Dilution
Alfamino Infant	PWD	20 kcal/fl. oz.
Alimentum	PWD	20 kcal/fl. oz.
EleCare for Infants	PWD	20 kcal/fl. oz.
EleCare Junior	PWD	30 kcal/fl. oz.
Enfamil NeuroPro EnfaCare	PWD	22 kcal/fl. oz.
Gerber Extensive HA	PWD	20 kcal/fl. oz.
Good Start Dr. Brown's Soy-ease Pro	PWD	20 kcal/fl. oz.
Neocate Infant	PWD	20 kcal/fl. oz.
Neocate Junior	PWD	30 kcal/fl. oz.
NeoSure	PWD	22 kcal/fl. oz.
Nutramigen	PWD, LCN	20 kcal/fl. oz.
Pregestimil	PWD	20 kcal/fl. oz.
PurAmino Infant	PWD	20 kcal/fl. oz.
Similac Advance	PWD, LCN	20 kcal/fl. oz.
Similac Sensitive	PWD	20 kcal/fl. oz.
Similac Gentle Comfort	PWD	20 kcal/fl. oz.

Standard Dilutions and Calorie Levels for Select WIC Authorized Infant Formulas

Calorie Level of Select Ready-to-Feed Infant Formulas		
Product Name	Form	Standard Calorie Level
Alimentum	RTF	20 kcal/fl. oz.
Enfamil NeuroPro EnfaCare	RTF	22 kcal/fl. oz.
Enfamil 24	RTF	24 kcal/fl. oz.
Enfamil Premature High Protein 24 Cal	RTF	24 kcal/fl. oz.
Enfamil Premature 20 Cal	RTF	20 kcal/fl. oz.
Enfamil Premature 24 Cal	RTF	24 kcal/fl. oz.
Enfamil Premature 30 Cal	RTF	30 kcal/fl. oz.
NeoSure	RTF	22 kcal/fl. oz.
Nutramigen	RTF	20 kcal/fl. oz.
Pregestimil	RTF	20 kcal/fl. oz.
		24 kcal/fl. oz.
Similac Advance	RTF	20 kcal/fl. oz.
Similac Sensitive	RTF	20 kcal/fl. oz.
Similac Special Care High Protein 24	RTF	24 kcal/fl. oz.
Similac Special Care with iron 20	RTF	20 kcal/fl. oz.
Similac Special Care with iron 24	RTF	24 kcal/fl. oz.
Similac Special Care with iron 30	RTF	30 kcal/fl. oz.
Similac Gentle Comfort	RTF	20 kcal/fl. oz.

Maximum Monthly Allowance (MMA) for Infants by Category and Age

The maximum monthly allowance (MMA) of formula shall be provided in the food package (I, II or III) for all non-breastfeeding infants. Partially breastfed infants shall be given powdered formula at a volume that at least meets and most closely matches the volume of infant formula consumed, up to the MMA per Federal WIC regulations. The amount of formula actually received by the participant is dependent on their age, breastfeeding status and the type, form and reconstitution rate of the infant formula prescribed.

MMA for Powdered Formula in Reconstituted Fluid Ounces					
		Age in Months			
			0-3 ¹	4-5	6-11
Category	Infants Breastfeeding Mostly		435 fl. oz.	522 fl. oz.	384 fl. oz. with infant foods
	Infants Breastfeeding Some		870 fl. oz.	960 fl. oz.	696 fl. oz. with infant foods
	Infants Formula Fed		870 fl. oz.	960 fl. oz.	696 fl. oz. with infant foods

*

MMA for Liquid Concentrated Formula in Reconstituted Fluid Ounces					
		Age in Months			
			0-3 ¹	4-5	6-11
Category	Infants Breastfeeding Mostly ²		388 fl. oz.	460 fl. oz.	315 fl. oz. with infant foods
	Infants Breastfeeding Some ²		823 fl. oz.	896 fl. oz.	630 fl. oz. with infant foods
	Infants Formula Fed		823 fl. oz.	896 fl. oz.	630 fl. oz. with infant foods

MMA for Ready-to-Feed Formula in Fluid Ounces					
		Age in Months			
			0-3 ¹	4-5	6-11
Category	Infants Breastfeeding Mostly ²		384 fl. oz.	474 fl. oz.	338 fl. oz. with infant foods
	Infants Breastfeeding Some ²		832 fl. oz.	913 fl. oz.	643 fl. oz. with infant foods
	Infants Formula Fed		832 fl. oz.	913 fl. oz.	643 fl. oz. with infant foods

¹ Please see Policy and Procedure 3.01 for information on issuing formula to breastfed infants in the first month of life.

² Concentrate and ready-to-feed formulas are rarely provided to Maryland WIC breastfed infants, and typically only when the powder form is not available. Once opened, ready-to-feed liquid and concentrated formulas must be discarded after 48 hours in the refrigerator. This may encourage use of more infant formula, which results in reducing breastmilk supply and breastfeeding success. Staff are encouraged to call the State WIC Nutrition or Lactation Line when these requests occur.

WIC Clinic: _____
 Fax: _____
 Phone: _____
 Email: _____

Medical Documentation Form

Issuance is subject to WIC approval based on Program Policy and Procedure. Maryland WIC Program does not provide non-contract standard milk and soy-based infant formulas without medical documentation. Our contract formulas are Similac Advance or Similac Soy Isomil. Please contact the Local WIC Agency (see back of form) with any questions.

1) Patient Information

Patient Name: _____ Patient DOB: _____

Parent/Guardian: _____

Patient Medical Data (optional):	Weight:	Length/height:	Hgb:
Date Measured:			

2) Qualifying Medical Condition

- ☐ Low Birth Weight ☐ Prematurity (weeks gestation _____) ☐ GER/GERD
☐ Failure to Thrive ☐ Cow's Milk Protein Allergy ☐ Food Allergies (specify): _____
☐ Malabsorption ☐ Cow's Milk Protein Intolerance ☐ Other (**no ICD codes**): _____

Additional Comments/Symptoms: _____

3) Formula/WIC Eligible Nutritional Requested

Product Requested: _____ Amount per day: _____(oz)

Calorie Level: ☐ Standard dilution ☐ Other: _____kcal/oz

4) Duration

☐ 1 month ☐ 3 months ☐ 6 months ☐ 12 months ☐ Until 1 year old

5) WIC Food Requests ****Check ONE box below****

***Note:** Infant supplemental foods begin at 6 months old; they include infant/fresh fruits & vegetables and infant cereal*
 For detailed information on the supplemental foods WIC provides please visit www.mdwic.org or call your local WIC clinic.

Does the patient have any food restrictions?

- ☐ **No:** WIC Professional may determine WIC foods and amounts.
☐ **Yes:** (must specify): _____

6) Health Care Provider with Prescriptive Authority

Circle Credentials: MD, DO, PA, NP/CNP/CRNP/DNP, APN, CNM, CRNA, CNS, MBBS, MBBCh

Name: (Please print, type or stamp) _____

Phone: _____ Fax: _____

Signature and Credentials: _____ Date: _____

WIC use only: ☐ Approved ☐ Not Approved ☐ Pending

Signature: _____ Date: _____

Comments:

Website: www.mdwic.org. Click on the Health Care Providers section for more information.

County	Telephone	Fax	Email
Allegany County	(301) 759-5020	(301) 777-5861	achd.nutrition@maryland.gov
Anne Arundel County	(410) 222-6797	(410) 222-0137	annearundelwic@aacounty.org
Baltimore City (Health Department)	(410) 396-9427	(410) 276-1178	WIC@baltimorecity.gov
Baltimore City (Johns Hopkins)	(410) 614-4848	(410) 614-9042	johnshopkinswic@gmail.com
Baltimore County	(410) 887-6000	(410) 887-6007	WICProgram@baltimorecountymd.gov
Calvert County	1-877-631-6182	(240) 883-6851	charlescounty.wic@maryland.gov
Caroline County	(410) 479-8060	(410) 479-4417	midshore.wic@maryland.gov
Carroll County	(410) 876-4898	(410) 876-4959	carroll.wic@maryland.gov
Cecil County	(410) 996-5255	(410) 996-5719	cchd.wic@maryland.gov
Charles County	(301) 609-6857	(240) 883-6851	charlescounty.wic@maryland.gov
Dorchester County	(410) 479-8060	(410) 479-4417	midshore.wic@maryland.gov
Frederick County	(301) 600-2507	(301) 600-3193	wicprogram@frederickcountymd.gov
Garrett County	(301) 334-7710	(301) 334-7739	mdh.garrettcountywic@maryland.gov
Harford County	(410) 939-6680	(443) 526-6162	hchd.wic@maryland.gov
Howard County	(410) 313-7510	(410) 313-5719	howardwic@howardcountymd.gov
Kent County	(443) 262-4423	(443) 262-9356	uppershore.wic@maryland.gov
Montgomery County (CCI)	(301) 762-9426	(301) 495-0318	wic-info@cciweb.org
Prince George's (Health Department)	(301) 856-9600	(301) 856-9609	WIC_PrinceGeorges@co.pg.md.us
Prince George's County (Greater Baden)	(301) 324-1873	(301) 324-2415	wic@gbms.org
Queen Anne's County	(443) 262-4423	(443) 262-9356	uppershore.wic@maryland.gov
Somerset County	(410) 749-2488	(410) 548-5166	lowershore.wic@maryland.gov
St. Mary's County	1-877-631-6182	(240) 883-6851	charlescounty.wic@maryland.gov
Talbot County	(410) 479-8060	(410) 479-4417	midshore.wic@maryland.gov
Washington County	(240) 313-3335	(240) 313-3313	wchd.wic@maryland.gov
Wicomico County	(410) 749-2488	(410) 548-5166	lowershore.wic@maryland.gov
Worcester County	(410) 749-2488	(410) 548-5166	lowershore.wic@maryland.gov

MARYLAND DEPARTMENT OF HEALTH
WIC PROGRAM
POLICY AND PROCEDURE MANUAL

Policy and Procedure Number: 3.03
Effective Date: October 1, 1995
Revised Date: June 11, 2026

SECTION: **FOOD PACKAGES**

SUBJECT: **Provision of WIC-Eligible Nutritionals for Children and Women**

A. Policy

1. WIC-Eligible Nutritionals:

Federal WIC regulations define WIC-eligible nutritionals as “products that are specifically formulated to provide nutritional support for individuals with a qualifying condition, when the use of conventional foods is precluded, restricted, or inadequate.”

WIC-eligible nutritionals must meet the following guidelines;

- a. Serve the purpose of a food, meal or diet;
- b. May be nutritionally complete or incomplete;
- c. Provide a source of calories and one or more nutrients;
- d. Be designed for enteral digestion via an oral or tube feeding;
- e. May not be a conventional food, drug, flavoring, or enzyme;
- f. Meet the definition of medical food in the Orphan Drug Act.

2. Authorized WIC-Eligible Nutritionals:

WIC-eligible nutritionals or infant formulas shall only be issued to women or children when prescribed by a Health Care Provider¹ (HCP) on the Maryland WIC Medical Documentation Form or prescription note for a specific qualifying medical condition (please see 3a) as part of Food Package III.² **All requests are subject to Competent Professional Authority³ (CPA) approval.**

¹ A Health Care Provider (HCP) is defined as a practitioner with prescriptive authority, i.e., physician, certified nurse practitioner, certified nurse-midwife or physician's assistant.

² Medical Documentation Forms from other WIC Programs accepted if the form contains all information listed in B.1.a.

³ A WIC Competent Professional Authority (CPA) is defined by federal WIC regulations as a local agency staff member that is authorized to determine nutritional risk, review formula requests, and prescribe supplemental foods.

- a. The following list includes **examples of WIC-eligible nutritionals authorized by Maryland WIC**. This list is not inclusive of all WIC-eligible nutritionals available to Maryland WIC participants. Additionally, when age-appropriate and medically indicated, the formulas authorized for infants (see 3.02) may also be used for women and children. Please contact the State Nutrition and Breastfeeding Services Unit with questions.

1. Alfamino Junior
2. Boost Kid Essentials 1.0, Boost Kid Essentials 1.5 Cal
3. Boost, Boost Plus, Boost High Protein, Boost Breeze
4. EleCare Junior
5. Enfagrow Premium Toddler Nutritional Drink
6. Ensure, Ensure Plus, Ensure with Fiber, Ensure Clear
7. Kate Farms Pediatric 1.2 Standard and Pediatric Peptide 1.0
8. Jevity
9. Neocate (EO28) Splash
10. Neocate Junior, Neocate Junior with Prebiotics
11. Neocate Syneo Junior
12. Neocate Splash Junior
13. Nepro
14. Nutramigen Toddler
15. Nutren
16. Nutren Junior
17. PediaSure with Fiber, PediaSure 1.5 with Fiber
18. PediaSure, PediaSure 1.5 Cal
19. PediaSure Peptide, PediaSure Peptide 1.5 Cal
20. Peptamen
21. Peptamen Junior
22. Portagen Powder
23. PurAmino Toddler
24. Similac Go and Grow
25. Suplena
26. Vivonex Pediatric

3. Women and Children Issued Food Package III

Women and children eligible for Food Package III must have a documented qualifying condition as documented by a HCP on the Maryland WIC Medical Documentation Form or prescription note that requires the use of an infant formula or WIC-eligible nutritional because the use of conventional foods is precluded, restricted, or inadequate to address their special nutritional needs.⁴

All Food Package III requests are subject to CPA approval.

- a. **Qualifying conditions include, but are not limited to:**

⁴ Medical Documentation Forms from other WIC Programs accepted if the form contains all information listed in B.1.a.

- i. premature birth,
- ii. low birth weight,
- iii. failure to thrive,
- iv. inborn errors of metabolism,
- v. gastrointestinal disorders,
- vi. malabsorptive syndromes,
- vii. immune system disorders,
- viii. severe food allergies that require elemental formulas,
- ix. life threatening disorders, diseases and medical conditions that impair ingestion, digestion, absorption or the utilization of nutrients that could adversely affect the participant's nutritional status.

b. Federal Regulations prohibit the issuance of Food Package III for **non-qualifying medical conditions**. **Food Package III shall NOT be issued** for the purpose of:

- i. non-specific formula or food intolerance;
- ii. food intolerance to lactose or milk protein that can be successfully managed with the use of one of the other WIC food packages (e.g., lactose-free milk or soy beverage to replace cow's milk).
- iii. enhancing nutrient intake or managing body weight without an underlying qualifying condition.

4. Quantity

Federal WIC Regulations define the maximum monthly allowance (MMA) as the maximum amount of WIC-eligible nutritional or infant formula WIC shall provide for a woman or a child in Food Package III. The MMA for WIC-eligible nutritional or infant formula issued to women or children in Food Package III is 910 fluid ounces per month (approximately 30 fluid ounces per day) for ready-to-feed and reconstituted powder, and 455 ounces of liquid concentrate, which would reconstitute to 910 ounces of ready-to-feed.

B. Procedure

1. Medical Documentation from Health Care Provider

Only a HCP may request a WIC-eligible nutritional or infant formula for women or children. Written or faxed documentation by a HCP for the request must be provided on the Maryland WIC Medical Documentation Form (Policy and Procedure 3.02C) or on a prescription note.⁵

A new prescription shall be obtained at each certification/recertification unless the prescription has been written within 60 calendar days of that appointment. **All WIC-eligible nutritional/infant formula requests for women and children are subject to CPA approval.**

⁵ Medical Documentation Forms from other WIC Programs accepted if the form contains all information listed in B.1.a.

- a. At minimum, the following information **must be included** on the medical documentation form or prescription note:

Section One	The name of the participant
	The birth date of the participant
Section Two	The medical diagnosis warranting the requested formula
Section Three	The brand name of the formula prescribed
	Calorie level needed, if other than the standard dilution
	Quantity requested, if less than the MMA
Section Four	Duration the formula is medically required
Section Five	WIC food requests or restrictions or HCP authorization to allow the WIC CPA to determine the appropriate supplemental foods;
Section Six	Date of prescription
	Signature or signature stamp of the HCP and credentials

- b. The following information **may be included** on the medical documentation form or prescription note:

Section One	Weight and date measured
	Length/Height and date measured
	Hemoglobin/Hematocrit and date measured
Section Two	The symptoms experienced by the child or woman related to the medical diagnosis

2. Food Package Assignment

Policy and Procedure 3.01 shall be followed when choosing the optimal food package.

- The CPA may not issue the WIC-eligible nutritional or exempt infant formula for longer than the duration requested by the HCP. If required by policy or deemed appropriate by the CPA's nutrition assessment, the CPA may require the HCP to reassess the medical necessity of the formula sooner than the requested duration on the Medical Documentation Form or prescription note.
- Quantity of the WIC-eligible nutritional or infant formula provided shall be customized to a volume that at least meets and most closely matches the volume of formula consumed, up to the maximum volume allowed per WIC regulations.
- If the prescription authorizes the participant to receive any of the WIC foods along with the prescribed WIC-eligible nutritional or infant formula, a CPA shall customize the food package by selecting a core food package for the participant's category that provides the foods allowed. The formula requested and specific quantity shall be added to the food package. Foods that have not been prescribed shall be zeroed from the customized food package; quantities of foods that exceed what has been prescribed shall be reduced to match the

prescription.

- d. The HCP may authorize the WIC CPA to determine the appropriate supplemental foods and their amounts by checking “WIC professional may determine WIC foods and amounts” on the Medical Documentation Form, or by indicating the same on a prescription note.
- e. When an infant formula is requested for children and women participants, the guidelines for issuance of these formulas shall be followed (see Policy and Procedure 3.02).

3. Incomplete Medical Documentation

Formula shall not be issued until all required information is obtained and documented.

- a. If the prescription is **only missing the duration requested** and the HCP is unavailable, one month’s allotment may be provided until the length of time is obtained from HCP and documented in the comment section of the Food Prescription Notes screen.
- b. **If the WIC Food Requests section is incomplete** on the Medical Documentation Form or not specified on the prescription note, a “formula only” package must be issued. Authorization for WIC foods must be documented before supplemental WIC foods can be issued.
- c. **If the HCP signature is missing, a signed form shall be obtained in order to assign the formula.**
- d. **If the written prescription is missing other required information (e.g., medical diagnosis, illegible HCP name/signature, missing HCP credentials),** and obtaining a new, written prescription would cause undue hardship to the participant or delay in the provision of formula that would place the participant at nutritional risk, **documentation of a phone contact with the health care provider or HCP’s office staff will suffice.** Documentation of the phone contact must include: the name of the staff making the call to the health care provider; name of the HCP; name of the person providing the information (if not speaking directly with the HCP); date of the phone call; and all the required information about the WIC-eligible nutritional.

4. Documentation of Food Package III Requests in the Participant Record

- a. Prior to issuance, the CPA shall:
 - i. evaluate, pend, approve and authorize, or not approve, all requests for products other than the contract infant formulas;
 - ii. notify the HCP when any modifications to original requests are made, if appropriate.
- b. All Medical Documentation Forms or food prescription notes shall be scanned into the management information system and documented by the CPA in the

Food Prescription Note screen at the time of issuance.

- c. The name of the CPA who evaluated the need for the formula and authorized its issuance must be documented in the Food Prescription Note screen of the management information system.
- d. The paper documentation (Medical Documentation Form or food prescription note) shall be kept on file at the local agency for a minimum of six months.

Attachments:

3.03 A Standard Dilution Rates and Calorie Levels for Select WIC-Eligible
 Nutritionals

References:

- 1. Section 5(b)(3) of the Orphan Drug Act (21 U.S.C. 360ee(b)(3)).
 - 2. 7 CFR 246 Special Supplemental Nutrition Program for Women, Infants, and Children (WIC) Revisions in the Food Packages-Final Rule, 3/04/14
-

Revisions:

06/17 Updated policy based on eWIC terminology.

07/20 Added Medical Documentation Forms from other WIC Programs accepted if the form contains all information listed in B.1.a.

05/22 Attachment 3.03A Corrected calorie level at standard dilution for Nutramigen Toddler to 20.

06/24 Removed Enfagrow Toddler Transitions and changed the name of Enfagrow Next Step to Enfagrow Premium Toddler Nutritional Drink in 3.03, section A. 2. a. 3.03 A.: Added Kate Farms Pediatric Standard 1.2 and Kate Farms Pediatric Peptide 1.0 and 1.5.

03/25 Removed Bright Beginnings Soy Pediatric Drink and Gerber Good Start Stage Three from 3.03, 2a and 3.03A, and added Neocate Syneo Junior to both Kate Farms products to 3.03 2a.

01/26 Revised B, 4c. and d. to clarify the procedure for missing and illegible information on Medical Documentation Forms.

06/26 Revised A2a: Updated formula name in chart; revised B1a: Changed section numbers in chart to match the revisions in 3.02C; revised B3b: changed wording to match the revisions in 3.02C.

Standard Dilutions and Calorie Levels for Select WIC-Eligible Nutritionals

The products listed in this table are select examples of Maryland WIC Authorized infant formula or WIC-eligible nutritionals. This list is not inclusive of all products or forms of products authorized. Please contact the State WIC office with questions regarding authorized infant formula or WIC-eligible nutritionals. All infant formula or WIC-eligible nutritional requests are subject to Local Agency CPA approval.

- **Calorie Level at Standard Dilution:** is the reconstituted calorie level per fluid ounce as stated in the manufacturer instructions for powder and liquid concentrate forms of infant formula or WIC-eligible nutritional. Any variation from the standard dilution must be under the supervision of the participant's Health Care Provider.
- **Standard Calorie Level:** is the calorie level per fluid ounce for ready-to-feed infant formula or WIC-eligible nutritionals. Ready-to-feed infant formula or WIC-eligible nutritional should NEVER be diluted with water.

Key:	PWD: Powder	LCN: Liquid Concentrate	RTF: Ready-to-Feed
-------------	-------------	-------------------------	--------------------

Calorie Level at Standard Dilution for Select Powder and Liquid Concentrate WIC-Eligible Nutritionals		
Product Name	Form	Calorie Level at Standard Dilution
Alfamino Junior	PWD	30 kcal/fl. oz.
EleCare for Infants	PWD	20 kcal/fl. oz.
EleCare Junior	PWD	30 kcal/fl. oz.
Enfagrow Premium Toddler Nutritional Drink	PWD	20 kcal/fl. oz.
Neocate Infant	PWD	20 kcal/fl. oz.
Neocate Junior	PWD	30 kcal/fl. oz.
Neocate Junior with Prebiotics	PWD	30 kcal/fl. oz.
Neocate Syneo Junior	PWD	30 kcal/fl. oz.
Nutramigen Toddler	PWD	20 kcal/fl. oz.
Pepdite Junior	PWD	30 kcal/fl. oz.
Peptamen	PWD	30 kcal/fl. oz.
Peptamen Junior	PWD	30 kcal/fl. oz.
Portagen	PWD	30 kcal/fl. oz.
PurAmino Infant	PWD	30 kcal/fl. oz.
PurAmino Toddler	PWD	30 kcal/fl. oz.
Similac Go and Grow	PWD	19 kcal/fl. oz.
Vivonex Pediatric	PWD	24 kcal/fl. oz.

Standard Dilutions and Calorie Levels for Select WIC-Eligible Nutritionals

Calorie Level of Select Ready-to-Feed WIC-Eligible Nutritionals		
Product Name	Form	Standard Calorie Level
Boost Kid Essentials 1.0 Cal	RTF	30 kcal/fl. oz.
Boost Kid Essentials 1.5 Cal	RTF	45 kcal/fl. oz.
Boost	RTF	30 kcal/fl. oz.
Boost Plus	RTF	45 kcal/fl. oz.
Boost High Protein	RTF	30 kcal/fl. oz.
Boost Breeze	RTF	30 kcal/fl. oz.
Boost Kid Essentials 1.0 Cal	RTF	30 kcal/fl. oz.
Enfaport	RTF	30 kcal/fl. oz.
Ensure	RTF	30 kcal/fl. oz.
Ensure Plus	RTF	45 kcal/fl. oz.
Ensure with Fiber	RTF	30 kcal/fl. oz.
Ensure Clear	RTF	30 kcal/fl. oz.
Jevity	RTF	30 kcal/fl. oz.
Kate Farms Pediatric Standard 1.2	RTF	36 kcal/fl.oz.
Kate Farms Pediatric Peptide 1.0	RTF	30 kcal/fl. oz.
Kate Farms Pediatric Peptide 1.5	RTF	44 kcal/fl. oz.
Neocate (EO28) Splash	RTF	30 kcal/fl. oz.
Neocate Splash	RTF	30 kcal/fl. oz.
Nepro	RTF	60 kcal/fl. oz.
Nutren	RTF	30 kcal/fl. oz.
Nutren Junior	RTF	30 kcal/fl. oz.
PediaSure	RTF	30 kcal/fl. oz.
PediaSure 1.5 Cal	RTF	45 kcal/fl. oz.
PediaSure with Fiber	RTF	30 kcal/fl. oz.
PediaSure 1.5 with Fiber	RTF	45 kcal/fl. oz.
PediaSure Peptide	RTF	30 kcal/fl. oz.
PediaSure Peptide 1.5 Cal	RTF	45 kcal/fl. oz.
Pediasure Enteral Formula	RTF	30 kcal/fl. oz.
Pediasure with Fiber Enteral Formula	RTF	30 kcal/fl. oz.
Suplena	RTF	60 kcal/fl. oz.

**MARYLAND DEPARTMENT OF HEALTH
WIC PROGRAM
POLICY AND PROCEDURE MANUAL**

**Policy and Procedure Number: 3.04
Effective Date: October 1, 1995
Revised Date: February 12, 2026**

SECTION: FOOD PACKAGES

SUBJECT: Authorized Foods

A. Policy

A listing of food types and brand names that meet WIC food package specifications shall be distributed to local agencies for issuance to all participants and caregivers of infant and child participants. This listing, known as the WIC Authorized Foods List, is shown as Attachment 3.04A.

The WIC Authorized Foods List shall be reviewed periodically to ensure that the foods continue to meet the specifications detailed in Attachment 3.04B. In general, to become WIC-authorized, foods must:

1. Meet the specifications detailed in Attachment 3.04B.
2. Be available within the state of Maryland. Priority will be given to foods that are widely distributed throughout the state. Foods available only in a single jurisdiction may be considered to meet a participant or local agency need.
3. Be free of artificial, reduced-calorie, or no-calorie sweeteners.
4. Be available at a reasonable price to maintain cost neutrality of food packages.
5. Allow a variety of choices and consider participant cultural and other food preferences.

B. Procedure

The State WIC Nutrition Services Unit will evaluate foods for the WIC Authorized Foods List. A Request for Product Information shall be sent to food manufacturers and vendors and all products that are submitted by the stated deadline will be reviewed.

Attachments:

3.04A Maryland WIC Program Authorized Foods List
3.04B Specifications for Authorized Foods

References:

1. Federal Regulations, 7 CFR Part 246, Table 4 CFR 246.10(e)(12). Special

Supplemental Nutrition Program for Women, Infants and Children (WIC): Revisions in the WIC Food Packages; Final Rule

Revisions:

- | | |
|---------|---|
| 10/2007 | Updated attachments (policy statement) and included American Dietetic Association as a reference due to length. |
| 10/2009 | Removed requirements for printing of Authorized Foods List. Changed period for review of the List from every three years to annually. Revised criteria for determining acceptability of specific foods for inclusion on the List. Updated Attachment 3.04B to reflect revisions to food packages required by the Interim Final Rule. Removed Attachment C. Updated references. |
| 10/2010 | Attachment 3.04A changed to current Authorized Foods List (October 2009 – Revised January 2010) |
| 01/2011 | Attachment 3.04A changed to current Authorized Foods List (January 2011) 3.04B revised specifications to include soy products. |
| 10/2012 | Removed artificial flavorings and colorings from A3. Attachment 3.04A changed to October 2012 Authorized Foods List, updated for purpose of cost containment. |
| 10/2013 | Attachment 3.04A changed to October 2013 Authorized Foods List, updated to clarify food items allowed and not allowed and to assure availability of listed items. |
| 10/2014 | Attachment 3.04A changed to reflect the revisions to food packages required or allowed by the Final Rule (Authorized Foods List October 2014). Several cereals, an additional variety of soy beverage, and a list of specific whole grain breads were included. An educational section was added on how to use infant fruit and vegetable checks to obtain the full nutritional benefit. |
| 04/2015 | Attachment 3.04A changed to current Authorized Foods List (October 2014 – Revised April 2015). Attachment 3.04B updated to allow for the issuance of reduced-fat milk. Super and ultra skim milks were added as non-allowable items. Whole grain bread was added as a substitution for 100% whole wheat bread. White potatoes were deleted as a non-allowable item. Table 4 CFR 246.10(e)(12) was added as a reference. |
| 10/2015 | Reformatted Attachment 3.04B. Removed Colby, Muenster and Provolone as allowed cheeses. Removed “may not be organic” under infant fruits & vegetables and infant meats. |
| 6/2017 | Updated Attachment 3.04B to reflect authorized foods that are included in the Authorized Foods List. |

- 10/2018 Revised 3.04A based on authorized foods open submission and addition of yogurt and whole wheat/whole grain pasta. Updated 3.04B to include yogurt and whole wheat/whole grain pasta.
- 8/2021 Revised 3.04A based on authorized foods open submission and addition of oats and organic products. Updated 3.04B to include oats and organics.
- 2/2026 Revised 3.04A based on authorized foods, open submission, and addition of new products. Updated 3.04B to reflect the Final Rule, 4/18/24 food package revisions authorized foods and Authorized Foods List, Effective February 2026 with inclusion of plant-based milk alternatives, sunflower seed butter, dried fruits and vegetables, fresh herbs, whole wheat pita, white quinoa, bulgur, buckwheat, and cornmeal. Removal of organic products except in tofu, fresh fruits and vegetables, fresh herbs, and infant foods (cereal, fruit and vegetable, and meat).



WIC AUTHORIZED FOODS LIST

BETTER NUTRITION | BRIGHTER FUTURE



EFFECTIVE FEBRUARY 2026

wic MARYLAND
BETTER NUTRITION, BRIGHTER FUTURE

Maryland
DEPARTMENT OF HEALTH

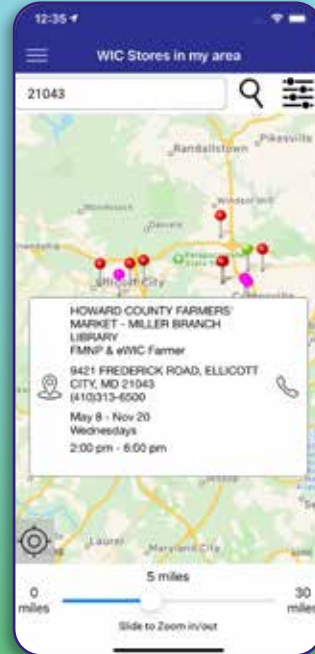
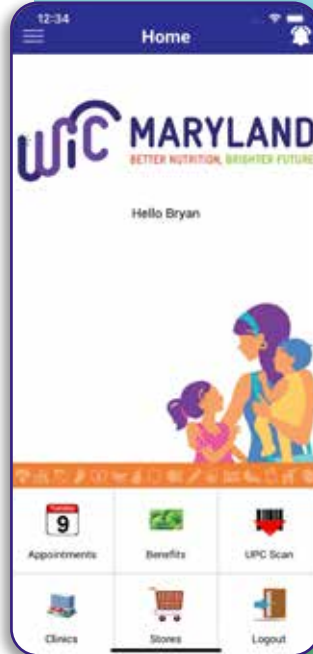
Download the Maryland WIC app!

To find and download the Maryland WIC mobile app, go to Google Play or the App Store, depending on your type of mobile device.



Use the app to:

- Check your monthly benefits and balances. It is always up to date!
- See what foods are WIC approved. All information from the Authorized Foods List is in the app!
- Scan new foods in the grocery store to see if they are WIC approved.



Join the WIC Client Portal!

WIC provides nutrition education, breastfeeding support, healthy supplemental foods, and health referrals for pregnant women, new mothers, infants, and children under the age of five. To access the Maryland WIC client portal, go to wicclientportal.health.maryland.gov.

Use the portal to:

- Determine eligibility for WIC and enroll in Maryland WIC Program for New Applicants.
- Add your new baby to your WIC account.
- Schedule a new WIC appointment, view past WIC appointments, and cancel or reschedule appointments.
- Submit a request for help from WIC staff.

- Check your monthly benefits and balances. It is always up to date!
- Upload and sign documents to get ready for your upcoming appointment.



WIC fraud prevention is everyone's responsibility!

By following these rules, you help the Maryland WIC program help you and others.

- **DO NOT** sell or give away your WIC foods and benefits.
- **DO NOT** buy or try to buy food items that are not WIC approved with your benefit.
- **DO NOT** return your WIC foods to the store for a refund or store credit.
- **REPORT** stores and other WIC participants that you know are not following the rules to your local WIC agency.

Please check our website www.mdwic.org for updates to the Approved Food List

Shopping List Terms

BAG	-	bag
CAN	-	can
CTR	-	container
DOZ	-	dozen
GAL	-	gallon
HGL	-	half gallon
OZ	-	ounces
QT	-	quart
\$\$\$	-	dollars
4PK	-	4 pack
6PK	-	6 pack

Nutritious foods like what you get from WIC can help your family be healthy.
Eating the right foods can help babies and children grow and learn better.

WIC foods include:

- **Fruits and Vegetables** for vitamins and minerals to help your body stay healthy
- **Dairy** products that provide calcium and vitamin D for strong bones
- **Protein** to build muscles and organs
- **Whole grains** for fiber and vitamins
- **Cereal** for iron and other vitamins for healthy blood

You will still need to buy other foods. WIC foods are meant to add to what you already buy. WIC staff can give you referrals for other programs that can help you feed your family.

Organic food is allowed for the following:

- Fresh, frozen, canned, and dried fruits and vegetables
- Fresh herbs
- Baby Food - fruits, vegetables, and meats
- Baby Food Cereal
- Tofu

WIC foods are not approved with artificial, reduced-calorie, no-calorie sweeteners, or artificial food dyes.

BABY FOODS

BABY FORMULA • BABY FOOD CEREAL
BABY FOOD FRUITS & VEGETABLES
BABY FOOD MEAT

Choose to breastfeed.
It is natural, healthy,
and convenient.

BABY FOODS

BABY FORMULA

BUY

- Brand, type, and size issued ONLY

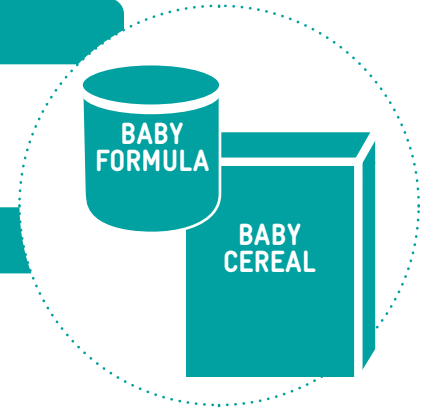
BABY FOOD CEREAL

BUY

- 8- or 16-oz (227 or 454 g) container
- Dry
- Organic is OK
- Store brand if available

Not WIC Approved:

- With added DHA
- With added fruit
- With formula



BABY FOOD FRUITS & VEGETABLES

BUY:

- 4-oz (113 g) containers
 - 2-packs of 2-oz (113 g) containers are OK
 - 2-packs of 4-oz (226 g) containers are OK
- Plain vegetables or mixed vegetables (example: carrots and sweet potatoes)
- Plain fruit or mixed fruits (example: pears and bananas)
- Mixed fruit and vegetables (example: apples and spinach)
- Organic is OK
- Store brand if available

Not WIC Approved:

- With DHA
- With added meat, yogurt, cereal, pasta, or rice
- Dinners, desserts, soups, or stews
- Pouches or smoothies
- Refrigerated baby foods
- Multi-packs larger than 2-packs of 4-oz containers

BABY FOOD MEAT

BUY:

- 2.5-oz (71 g) single container
- Plain chicken, turkey, beef, lamb, veal, or ham
- With gravy or broth is OK
- Organic is OK
- Store brand if available

Not WIC Approved:

- With added DHA
- With added vegetables, fruit, rice, cereal, or pasta
- Dinners, meat sticks, soups, or stews
- Pouches



A 2-pack of 2-oz (113 g) containers equals 1 container.
2-pack of 4-oz (226 g) containers equals 2 containers.



FRUITS & VEGETABLES

FRESH • FRESH HERBS • FROZEN • DRIED • CANNED

FRUITS &
VEGETABLES

FRUITS & VEGETABLES

BUY:

- Any brand
- Organic is OK

FRESH

BUY:

- Loose or pre-packaged
- Whole or cut
- Vegetables and fruit packaged with herbs are OK

Not WIC Approved:

- With dips, sauces, or dressings
- With cheese, nuts, or croutons
- Salad bar items, fruit baskets, or decorative items

FRESH HERBS

BUY:

- Fresh
- In a plastic container/bunch
- Blends of approved herbs are ok

Not WIC Approved:

- Dried herbs or spice
- Potted herbs
- Seeds
- With fats or oils
- With added sugars



Basil
Bay Leaf
Chives
Cilantro
Dill
Fennel
Garlic
Ginger Root
Lemon Grass
Marjoram
Mint
Oregano
Parsley
Rosemary
Sage
Thyme
Tarragon
Turmeric Root

BUY fresh, frozen, canned, and dried fruits and vegetables with your WIC Fruit & Vegetable benefit.

FROZEN

BUY:

- Plain
- Low sodium is OK
- Added herbs and spices are OK

Not WIC Approved:

- With sugar or syrup
- With artificial, reduced-calorie, or no-calorie sweeteners
- With rice, pasta, breadings, or other grains
- With sauces, cheese, or milk
- With butter, fat, oil, or meat
- Soup

DRIED

BUY:

- Plain dried fruits or vegetables

Not WIC Approved:

- With added fats or oils
- With added sugars
- With added nuts
- With artificial, reduced-calorie, or no-calorie sweeteners
- Fruit leathers or roll-ups

CANNED

BUY:

- Water or juice packed
- Low sodium is OK
- Added herbs and spices are OK

Not WIC Approved:

- Water as the first ingredient
- With sugar or syrup
- With artificial, reduced-calorie, or no-calorie sweeteners
- With butter, fat, oil, or meat
- With rice, pasta, or other grains
- With vinegar
- Pickled vegetables, relishes, olives, or catsup/ketchup
- Soup
- Pouches

Beans: BUY with your WIC beans benefit. See PROTEIN pages for details.



DAIRY

COW'S MILK • CHEESE • PLANT-BASED MILKS • TOFU • YOGURT

DAIRY

COW'S MILK

BUY:

- Type and size issued
- Store brand if available

BUY if issued:

- Lactose-reduced or lactose-free
- Dry
- Evaporated
- Ultra-High Temperature (UHT)



Not WIC Approved:

- 100% grass fed or organic
- Specialty milks, such as with added DHA, A2, ultra-filtered, or protein-fortified
- Cultured milks such as acidophilus, buttermilk, or kefir
- Flavored or sweetened
- Raw (unpasteurized) milk
- Sweetened condensed milk
- Filled evaporated milk
- Glass containers

CHEESE

BUY:

- 8-or 16-oz (226 or 453 g) package
- Domestic cow milk ONLY: American, Cheddar, Colby, Monterey Jack, Muenster, Mozzarella, Provolone (non-smoked), or Swiss
- Block, sliced, shredded, stick, string, cubed or cracker size slices are OK
- Low fat, reduced fat, and low sodium are OK
- Blends of approved cheeses are OK (like Colby-Jack)
- Store brand if available



Not WIC Approved:

- Organic
- Imported
- From the deli
- Made from goat or sheep milk
- Individually wrapped slices if not 100% cheese
- Processed cheese product, spread, or food
- Fresh mozzarella
- Cream, ricotta, or cottage cheese
- With added flavoring, nuts, peppers, dried fruit, or crackers

PLANT BASED MILKS

BUY:

Shelf-stable quarts 32-oz (946 mL) or refrigerated half gallons 64-oz (1.89 L)

- Brands and types shown here ONLY
- Types and sizes as issued.

Not WIC Approved:

- Organic



Shelf-stable quarts:



Pacific Foods

- Ultra Soy Milk Original



Silk

- Soy Original

Refrigerated half gallons:



8th Continent

- Soymilk Original



Bettergoods

- Plant-based Soymilk Original



Silk

- Kids Oatmilk Blend Original 59-oz (1.75 L)
- Soy Original

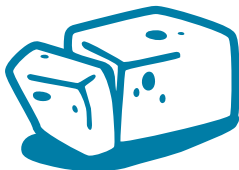
TOFU

BUY:

- 10-oz (283 g) container or larger
- Block tofu
- Organic is OK
- Brands and types shown here ONLY

Not WIC Approved:

- Any other form other than block (cubed)
- With added fats, sugar, oil, or salt
- With added flavorings, sauces, or seasonings



Franklin Farms

- Firm, Medium Firm, Extra Firm, Soft
- Organic: Firm, Pressed Firm, Medium Firm, Extra Firm



House Foods

- Premium: Firm, Medium Firm, Extra Firm
- Organic: Firm, Medium Firm, Extra Firm



Nature's Promise

- Organic: Firm, Extra Firm



Nature's Soy

- Firm, Extra Firm, Soft



O Organics

- Organic: Firm, Sprouted Super Firm Vac Pack, Extra Firm



Simple Truth Organic

- Organic: Firm, Extra Firm



SoyBoy

- Organic: Firm



Wegmans

- Organic: Firm



Woodstock

- Organic: Firm, Extra Firm

YOGURT

BUY:

- 32-oz (907 g), single containers
- Brands and types shown here ONLY
- Fat content as shown on your shopping list

Not WIC Approved:

- Greek, Islandic (Skyr), or Swiss style
- 100% grass fed or organic
- Multi-packs
- Lactose free, plant-based, goat, or sheep milk
- Drinkable, pouch, tubes, or infant
- With added DHA
- With artificial, reduced-calorie, or no-calorie sweeteners
- With added mix-in ingredients such as granola, candy pieces, honey, or nuts

FAT FREE & NON FAT YOGURT



Best Yet

- Plain



Bowl & Basket

- Plain



Essential Everyday

- Plain



Food Club

- Plain



Food Lion

- Plain



Giant

- Plain, Vanilla



Great Value

- Plain



Lucerne

- Plain

LOW FAT YOGURT



Best Yet

- Vanilla



Bowl & Basket

- Plain, Vanilla, Strawberry



Dannon

- Plain





Essential Everyday

- Blended Vanilla,
Blended Strawberry,
Blended Blueberry



Food Club

- Blended Vanilla,
Blended Strawberry



Food Lion

- Vanilla



Giant

- Plain



LALA

- Plain



Lucerne

- Plain, Strawberry



Wegmans

- Plain



Weis

- Plain

WHOLE MILK YOGURT



Bowl & Basket

- Plain



Brown Cow

- Plain, Vanilla, Maple



Lucerne

- Plain



Weis

- Plain



If you find yogurt not on the list, use the mobile app scanner to see if it is WIC approved!



PROTEIN

EGGS • PEANUT & SUNFLOWER SEED BUTTERS
BEANS, PEAS, & LENTILS • CANNED FISH

PROTEIN

EGGS

BUY:

- One dozen carton
- White or brown
- Medium or large
- Cage free is OK
- Store brand if available

Not WIC Approved:

- Organic, free range, or pasture raised
- Low fat or cholesterol free, omega-3, pasteurized, fertile, or other specialty eggs
- Small, extra large, or jumbo size eggs
- Small, extra large, or jumbo size eggs



PEANUT & SUNFLOWER SEED BUTTERS

BUY:

- 16–18-oz (454–510 g) container
- Type issued ONLY
- Plain, smooth, crunchy, extra crunchy, or creamy
- Low sodium and low sugar are OK
- Natural and fresh ground are OK
- Store brand if available



Not WIC Approved:

- Organic
- Peanut butter spreads
- Nut butters other than peanut
- Seed butters other than sunflower seed
- With non-hydrogenated oil or Palm oil
- Reduced fat
- With artificial, reduced-calorie, or no-calorie sweeteners
- Honey roasted, mixed with marshmallow, jelly, jam, honey, or chocolate
- Powdered or dry

BEANS, PEAS, & LENTILS

BUY:

- Dry, 16-or 32-oz (454 or 907 g) bag
- Canned, packed in water, 15–16-oz (425–454 g) can
- Beans like kidney, pinto (any color), black, red, navy, garbanzo (chickpeas), lima, butter, great northern, cannellini, mung, or fava
- Peas like split peas or black-eyed peas
- Lentils
- Fat-free refried beans
- Store brand if available

Not WIC Approved:

- Organic
- Water as the first ingredient
- Pork and beans, baked beans, or chili beans
- Soup, soup mixes, or with flavor packets
- Beans with sauce, vegetables, meat, sugar, fat, or oil



4 cans of beans

or



1 lb bag of dry beans

Green or wax beans, or sweet peas:
BUY with your WIC fruit & vegetable benefit

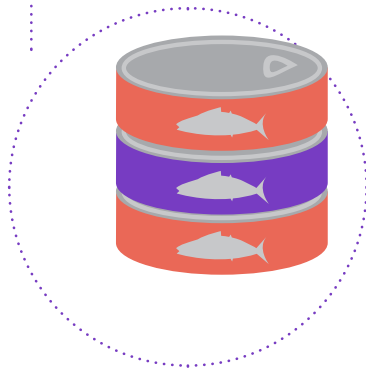
CANNED FISH

BUY:

- Chunk light tuna, 5-6 oz (142-170 g) cans, 4-packs of 5-oz (567 g) cans, or 12-oz (340 g) cans
- Pink salmon, 5-7.5-oz (142-213 g) cans, 4-packs of 5-oz (567 g) cans, or 14.75-oz (418 g) cans
- Sardines, 3.75-5.5-oz (106-156 g) cans or 15-oz (425 g) cans
- Packed in water or oil
- Sardines and Chunk Light Tuna with added spices, sauces, and flavorings such as tomato, mustard, herb, or lemon
- Regular or lower in sodium is OK
- Store brand if available

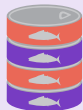
Not WIC Approved:

- Organic
- Albacore or white tuna
- Red salmon
- Gourmet
- Pouch, bowl, or kit
- Pink salmon with added spices, sauces, or flavorings



Possible ways to buy fish

20-ounces (567 g):



4-packs of 5-oz (567 g)
cans of tuna or salmon



2-5-oz (142 g) cans of tuna and
2-5-oz (142 g) cans of salmon



1-15-oz (425 g) can of
sardines and 1-5-oz
(142 g) can of tuna or
salmon



1-7.5-oz (213 g) can of salmon
and 2-3.75-oz (106 g) cans of
sardines and 1-5-oz (142 g)
can of tuna

10-ounces (283 g):



2-5-oz (142 g) cans
of tuna or salmon



1-3.75-oz (106 g) sardines
and 1-6-oz (170 g) can of
tuna or salmon

15-ounces (425 g):



1-15-oz (425 g)
can of sardines



1-14.75-oz (418 g)
can of salmon



3-5-oz (142 g) cans
of tuna or salmon



1-5-oz (142 g) can tuna or
salmon, 1-6-oz (170 g) can of
tuna or salmon, and 1-3.75-oz
(106 g) can of sardines

6-ounces (170 g):



1-6-oz (170 g) can
of tuna or salmon

12-ounces (340 g):



2-6-oz (170 g) cans
of tuna or salmon



1-12-oz (340 g)
can of tuna





WHOLE GRAINS

BROWN RICE • WHITE QUINOA • BULGUR
BUCKWHEAT & CORNMEAL • SOFT CORN
& WHOLE WHEAT TORTILLAS • 100%
WHOLE WHEAT BREAD & ROLLS
WHOLE WHEAT PITA • OATS
WHOLE WHEAT PASTA

WHOLE GRAINS

WHOLE GRAINS

BROWN RICE, WHITE QUINOA, BULGUR, BUCKWHEAT, & CORNMEAL

BUY:

- 12–32-oz (340–907 g) package
- Dry, plain
- Store brand if available

Not WIC Approved:

- Organic
- Ready-to-serve, precooked, or boil-in-bag
- Degerminated or degermed cornmeal
- Whole grain flours

- With added flavors, sauce, spice packets, or vegetables
- With added sugars, fats, oils, or salt (sodium)

SOFT CORN & WHOLE WHEAT TORTILLAS

BUY:

- 16-oz (454 g) package
- Brands and types shown here ONLY

Not WIC Approved:

- Organic
- Hard shell tortillas
- Enriched wheat tortillas
- White flour tortillas
- With added flavorings

A SHOPPABLE BRAND
bowl & basket



Bowl & Basket

- Whole Wheat

Celia's

- White Corn
- Yellow Corn
- Whole Wheat

Essential Everyday

- Corn Soft Taco
- Whole Wheat Soft Taco

Food Club

- White Corn Fajita Style
- Whole Wheat Wrap Style



Giant

- Yellow Corn Small Fajita
- White Corn Small Fajita
- Whole Wheat Medium Soft Shell Taco



Great Value

- Whole Wheat



La Banderita

- White Corn
- Yellow Corn
- 100% Whole Wheat Soft Taco
- 100% Whole Wheat Fajita



Signature Select

- Whole Wheat Soft Taco



Weis

- Whole Wheat

100% WHOLE WHEAT BREAD & ROLLS

BUY:

- 16–24-oz (454–680 g) bread packages
- 12–16-oz (340–454 g) bun/roll package
- Must have “100% Whole Wheat” on the front label

Not WIC Approved:

- Organic
- Bagels, English muffins, or Naan bread
- Enriched or White bread and rolls



Things to look for when buying whole wheat bread:

STEP 1:

Check the front label
100% whole wheat



STEP 2:

Check ounces (oz)
or grams (g) in product

STEP 3:

Check the ingredient list

Whole wheat flour is the first ingredient listed

Amount per serving		% Daily Value	
Total Fat 2.5 g	3%	Total Carbohydrate 23 g	8%
Saturated Fat 0.5 g	3%	Dietary Fiber 4 g	14%
Trans Fat 0 g		Total Sugars 4 g	
Polyunsaturated Fat 1 g		Includes 4 g Added Sugars	
Monounsaturated Fat 0 g		Protein 5 g	0%
Cholesterol 0 mg	0%		
Sodium 180 mg	8%		
Calories 130			
Vitamin D 0 mcg 0% • Calcium 40 mg 4% • Iron 1.3 mg 8% • Potassium 125 mg 2% • Thiamin 0.1 mg 8% • Riboflavin 0.1 mg 8% • Niacin 2 mg 15% • Folate 10 mcg DFE 2% (0 mcg folic acid)			
MADE FROM: WHOLE WHEAT FLOUR, WATER, SUGAR, WHEAT GLUTEN, YEAST, VEGETABLE OILS (SOYBEAN AND/OR CANOLA), MOLASSES, CONTAINS 2% OR LESS OF: OAT FIBER, SALT, MONOGLYCERIDES, CALCIUM PROPIONATE AND SORBIC ACID TO EXTEND FRESHNESS, SODIUM STEAROYL LACTYLATE, SOY LECITHIN, WHEY, CITRIC ACID, BUTTER. CONTAINS: WHEAT, MILK, SOY.			

WHOLE WHEAT PITA

BUY:

- 12–18-oz (340-510 g) pita package
- Brands and types shown here ONLY



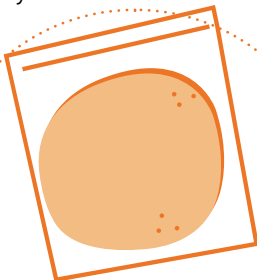
Mission

- Whole Wheat Pita



Sam's Choice

- Whole Wheat Greek Style Pita



OATS

BUY:

- 16–32-oz (454-907 g) package
- Dry, plain
- Brands and types shown here ONLY

Not WIC Approved:

- Organic
- Steel-cut oats
- With added flavors, sugar, or fats
- With added fruit or nuts



Best Yet

- Old Fashioned Oats



Food Club

- Old Fashioned Oats
- Quick Oats



Food Lion

- Old Fashioned Oats
- Quick Oats



Full Circle Market

- Old Fashioned Oats
Gluten Free



Giant

- Old Fashioned Oats
- Quick Oats



Giant Eagle

- Old Fashioned Oats
- Quick Oats



Good & Gather

- Old Fashioned Oats
- Quick Oats



Harris Teeter

- Old Fashioned Oats
- Quick 1 Minute Oats



Mom's Best

- Old Fashioned Oats
- Quick Oats



Quaker

- Old Fashioned Oats
- Quick 1 Minute Oats
- Quick 1 Minute Oats
Gluten Free



Signature Select

- Old Fashioned Oats
- Quick Oats

WHOLE WHEAT PASTA

BUY:

- 16-oz (454 g) package
- Whole wheat flour or whole durum wheat flour must be only flour ingredients listed
- Any shape

Not WIC Approved:

- Organic
- With added flavors, seasonings, or vegetables
- With added sugars, fats, oils, salt, protein, or fiber
- Refrigerated or frozen pasta/meals
- Pasta made from any other flour

If you find whole grains not on the list, use the mobile app scanner to see if it is WIC approved!



Bowl & Basket



Essential Everyday



Food Lion



Giant



Great Value



Harris Teeter



Ronzoni Healthy Harvest



Signature Select



Weis

SOME EXAMPLES OF HOW TO BUY 24 OZ (680 G) OF WHOLE GRAINS

1 Loaf
of 24-oz (680 g) bread



1 Package
of 24-oz (680 g) grain



YOU PICK ANY TWO

1 Package
of 12-oz (340 g) grain



1 Package
of 12-oz (340 g) rolls



1 Package
of 12-oz (340 g) pita



Grain = brown rice / bulgur / buckwheat / white quinoa / cornmeal

SOME EXAMPLES OF HOW TO BUY 48 OZ (1360 G) OF WHOLE GRAINS

2 Loaves
of 24-oz (680 g) bread



1 Loaf of 24-oz (680 g) bread
+
1 Bag of 12-oz (340 g) grain
+
1 Package of 12-oz (340 g) roll



2 Bags of 15-oz
(425 g) buns/rolls
+
1 Package of 18-oz
(510 g) oats



1 Loaf of 24-oz (680 g)
buns/rolls
+
1 Bag of 24-oz (680 g) grain



1 Loaf of 20-oz (567 g) bread
+
1 Package of 12-oz (340 g) pita
+
1 Box of 16-oz (454 g) pasta

YOU PICK ANY THREE

1 Loaf
of 16-oz (454 g) bread



1 Package
of 16-oz (454 g) oats



1 Bag
of 16-oz (454 g) grain



1 Box
of 16-oz (454 g) pasta



1 Package
of 16-oz (454 g) tortilla



1 Bag
of 15-16-oz (425-454 g)
buns/rolls



Grain = brown rice / bulgur/ buckwheat / white quinoa / cornmeal



JUICE

100% JUICE

JUICE

100% ORANGE JUICE OR 100% GRAPEFRUIT JUICE

BUY:

- 64-oz (1.89 L) container
- Unsweetened
- 100% Orange Juice and 100% Grapefruit Juice: ANY brand is OK
- Added calcium and vitamins are OK
- Added fiber is OK
- Store brand if available



Not WIC Approved:

- Organic
- Fresh-squeezed
- With added sugar
- With artificial, reduced-calorie, or no-calorie sweeteners
- Cocktails, punch, drink, or light



100% JUICE

BUY:

- 64-oz (1.89 L) container
- 100% juice, unsweetened
- Brands and flavors shown here ONLY
- Added calcium and vitamins are OK
- Added fiber is OK

Not WIC Approved:

- Organic
- With added sugar
- With artificial, reduced-calorie, or no-calorie sweeteners
- Cocktails, punch, drink, or light



Apple & Eve

- Apple
- Apple, Natural Style
- Big Bird's Apple
- Cranberry Apple
- Cranberry Blend
- Cranberry Grape
- Cranberry Pomegranate
- Cranberry Raspberry
- Elmo & Abby's Mango Strawberry



- Elmo & Tango's Punch
- Grover's White Grape
- Pineapple Tangerine
- Strawberry Passion
- Watermelon Grape

Best Yet

- Apple
- Grape
- Orange Mango
- Orange Pineapple
- Pineapple



Bowl & Basket

- Apple
- Grape
- Pineapple
- Pineapple from Concentrate
- Tomato
- Vegetable
- White Grape



Campbell's

- Tomato
- Tomato Low Sodium



Essential Everyday

- Apple
- Apple Cider
- Grape
- Cranberry Flavored Juice Blend
- Pineapple
- Tomato
- Vegetable
- White Grape



Food Club

- Apple
- Grape
- Pineapple
- Tomato



Food Lion

- Vegetable
- White Grape
- Apple
- Cranberry Juice Blend
- Grape
- Honeycrisp Apple Juice Blend
- Pineapple
- Ruby Red Grapefruit Blend
- Tomato
- Vegetable
- White Grape
- White Grape Peach



Freedom's Choice

- Apple
- Grape
- Tomato



Giant

- Apple
- Apple Cider
- Apple from Concentrate
- Grape
- Tomato
- Vegetable
- White Grape



Giant Eagle

- Apple
- Gala Style Apple
- Granny Smith Style Apple
- Grape
- White Grape



Great Value

- Apple
- Apple Not From Concentrate
- Cranberry
- Cranberry Pomegranate
- Mango Peach

- Pear
- Pineapple
- Tomato
- Vegetable
- Vegetable Low Sodium
- White Grape
- White Grape Peach



Harris Teeter

- Apple
- Cranberry
- Cranberry Grape
- Grape
- Pineapple
- Tomato



Juicy Juice

- Vegetable
- White Grape
- White Grape Peach
- Apple
- Apple Raspberry
- Berry
- Cherry
- Fruit Punch
- Grape
- Kiwi Strawberry
- Mango
- Orange Tangerine



- Peach Apple
- Strawberry Banana
- Strawberry Watermelon
- Tropical
- White Grape

Langers

- Apple
- Apple Berry Cherry
- Apple Cranberry
- Apple Grape
- Apple Kiwi Strawberry
- Apple Orange Pineapple

- Apple Peach Mango
- Concord Grape
- Cranberry
- Cranberry Raspberry
- Fruit Punch
- Grape
- Pineapple



Libby's

- Pineapple



Market Pantry

- Pineapple



Mott's

- Apple
- Apple Cherry
- Apple Mango
- Apple White Grape
- Fruit Punch
- Strawberry Kiwi
- Pineapple Passionfruit



Nature's Nectar

- Apple
- Grape
- White Grape



Northland

- Blueberry
- Blackberry
- Acai
- Cranberry
- Cranberry Grape
- Cranberry Pomegranate
- Cranberry Raspberry
- Pomegranate Blueberry



Ocean Spray

- Cranberry
- Cranberry Cherry



Old Orchard

- Cranberry
- Concord Grape
- Cranberry Elderberry
- Cranberry Mango
- Cranberry Pineapple
- Cranberry Pomegranate
- Cranberry Raspberry
- Cranberry Watermelon
- Apple
- Apple Cranberry



Ruby Kist

- Berry
- Black Cherry
- Cranberry
- Grape
- Kiwi
- Strawberry
- Red Raspberry
- Strawberry Watermelon
- White Grape
- Wild Cherry
- Apple
- Orange Flavored Juice



- Purple Grape
- White Grape

Signature Select

- Apple
- Apple Cider
- Cherry Pomegranate Elderberry, Antioxidant
- Cranberry
- Cranberry Grape
- Cranberry Raspberry
- Grape
- Pineapple
- Tomato



- Vegetable
- Vegetable Low Sodium
- White Grape

Smart Way

- Apple

That's Smart

- Grape

Tipton Grove

- Apple
- Cranberry
- Grape
- Pineapple
- White Grape



V8

- Vegetable
- Vegetable Low Sodium
- Vegetable Spicy Hot



Wegmans

- Apple
- Cherry
- Cranberry
- Cranberry Apple
- Cranberry Concord Grape
- Fruit Punch
- Grape



Weis

- Orange Peach Mango
- Ruby Red Grapefruit Blend
- White Grape Cranberry
- White Grape Peach
- Apple
- Cranberry
- Cranberry Apple
- Cranberry Grape
- Cranberry Raspberry



- Grape
- White Grape

Welch's

- Concord Grape
- Concord Grape with Calcium
- Concord Grape with Fiber
- Red Grape
- White Grape
- White Grape Peach

Juice should be limited to 4 ounces of 100% juice a day.

Tip: You can remove juice in your food package to get more fruits and vegetables.





CEREAL

COLD CEREAL • HOT CEREAL



CEREAL

CEREAL

COLD CEREAL

BUY:

- 12-oz (340 g) size or larger (cold cereal)
- Brands and types shown here ONLY
- Multi-packs of larger sizes are OK

Not WIC Approved:

- Organic
- Smaller than 12-oz (340 g) size (cold cereal)
- Individual single serving size packages
- Multi-packs of individual serving sizes
- With artificial, reduced-calorie, or no-calorie sweeteners



Gluten Free Cereal
Whole Grain Cereal



Best Yet: Bran Flakes | Corn Flakes | Crispy Rice | Frosted Shredded Wheat Bite Size | Toasted Oats



Bowl & Basket: Corn Flakes | Crispy Corn Squares | Crispy Rice | Crispy Rice Squares | Frosted Shredded Wheat Bite Size | Toasted Oats Original



Essential Everyday: Corn Flakes | Crispy Rice | Crunchy Corn Squares | Crunchy Rice Squares | Frosted Shredded Wheat Bite Size | Toasted Oats



Gluten Free Cereal



Whole Grain Cereal



Food Club: Bran Flakes | Corn Flakes | Corn Squares | Crisp Rice, Frosted Shredded Wheat Bite Size | Honey & Oats with Honey Oat Clusters | Honey & Oats with Almonds | Rice Squares | Toasted Oats



Food Lion: Bran Flakes | Crispy Rice | Oats & More with Almonds | Oats & More with Honey | Frosted Shredded Wheat Bite Size | Tasteos | Toasted Rice Squares



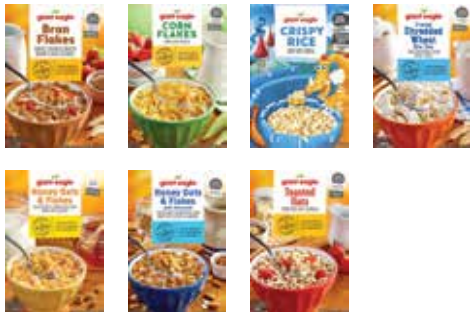
Freedom's Choice: Bran Flakes | Corn Flakes | Crisp Rice | Crispy Honey Oats and Flakes with Almonds | Frosted Shredded Wheat | Toasted Oats



General Mills: Blueberry Chex (GF) | Bluey Kix | Cheerios (GF) |
 Cheerios Hearty Nut Medley Maple Cinnamon | Cheerios Veggie Blends
 Apple Strawberry (GF) | Cheerios Veggie Blends Blueberry Banana (GF) |
 Cinnamon Chex (GF) | Corn Chex (GF) | Kix | Multi Grain Cheerios (GF) |
 Rice Chex (GF) | Strawberry Vanilla Chex (GF) | Total Whole Grain |
 Wheat Chex | Wheaties | Wheaties Protein Maple Almond |
 Wheaties Protein Honey Pecan



Giant: Bran Flakes | Corn Flakes (GF) |
 Corn Squares (GF) | Crispy Rice | Frosted
 Shredded Wheat Bite Sized | Honey
 Crunchin' Oats Almond | Oats & O's |
 Rice Square (GF)



Giant Eagle: Bran Flakes | Corn Flakes | Crispy Rice | Frosted Shredded Wheat Bite Size | Honey Oats & Flakes | Honey Oats & Flakes with Almonds | Toasted Oats

Grain Berry



Grain Berry: Apple Cinnamon Toasted Oats | Cinnamon Frosted Shredded Wheat | Multi-Bran Flakes | Original Toasted Oats



Great Value: Bran Flakes | Corn Flakes | Corn Squares ^{GF} | Frosted Shredded Wheat Bite Size | Rice Crisps | Rice Squares ^{GF} | Toasted O's



Harris Teeter: Bran Flakes |
 Corn Flakes | Crispy Rice | Frosted
 Shredded Wheat Bite-Sized | Honey Oat
 Cluster Crunch with Almonds | Oatmeal
 Squares Brown Sugar | Rice Squares |
 Toasted Oats



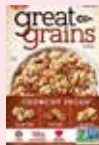
IGA: Bran Flakes | Corn Flakes |
 Crispy Rice | Frosted Shredded Wheat
 Bite Size | Toasted Oats



Kellogg's : Corn Flakes | Frosted Mini-Wheats Bite
 Size Blueberry Muffin | Frosted Mini-Wheats Bite Size
 Pumpkin Spice (seasonal) | Frosted Mini-Wheats
 Bite Size Strawberry | Frosted Mini-Wheats
 Little Bites | Frosted Mini-Wheats Original |
 Rice Krispies | Raisin Bran | Special K Original |
 Multi-Grain Touch of Cinnamon



Malt-O-Meal: Frosted Mini Spooners |
Raisin Bran



Post: Bran Flakes | Grape Nuts | Grape Nuts
Flakes | Great Grains Banana Nut Crunch |
Great Grains Cranberry Almond Crunch |
Great Grains Crunchy Pecan | Great Grains Raisin
Date Pecan | Great Grains Red Berry
Almond Crunch | Honey Bunches of Oats
Honey Roasted | Honey Bunches of Oats Vanilla |
Honey Bunches of Oats with Almonds | Raisin Bran



Quaker:
Life Multigrain Cereal - Original |
Mighty Life Strawberry Blueberry Bliss |
Mighty Life Very Vanilla | Oatmeal Squares
Brown Sugar | Oatmeal Squares
Honey Nut



Red & White: Corn Flakes | Crisp Rice



Signature Select: Bran Flakes |
Corn Flakes | Crispy Rice | Oats & More
with Almonds | Oats & More with Honey
| Rice Pockets | Toasted Oats



That's Smart: Crisp Rice





Weis: Corn Flakes | Crispy Rice |
Frosted Shredded Wheat Bite Size |
Honey Oats & Flakes with Almonds |
Toasted Oats | Wheat Bran Flakes |
Wheat Flakes

WIC allowed cereals are low
in sugar and high in iron.

At least 75% of WIC-allowed
cereals are whole grain.
Look for the wheat symbol! 



HOT CEREAL

BUY:

- 9.5-oz (269 g) size or larger (hot cereal)
- Brands and types shown here ONLY
- Multi-packs of larger sizes are OK
- Multi-packs of individual serving sizes are OK

Not WIC Approved:

- Organic
- Smaller than 9.5-oz (269 g) size (hot cereal)
- Individual single serving size packages

GF Gluten Free Cereal Whole Grain Cereal



Best Yet
Instant
Oatmeal
Original



Bowl & Basket
Instant
Oatmeal
Original



Cream of Rice
Cream of Rice



Cream of Rice
Cream of Rice
Instant



Cream of Wheat
Cream of
Wheat 2-1/2
minute



Cream of Wheat
Cream of
Wheat Instant



Cream of Wheat
Whole Grain
Cream of
Wheat 2-1/2
minute



**Essential
Everyday**
Instant
Oatmeal
Original



Food Club
Instant
Oatmeal
Original





Food Lion
Instant
Oatmeal
Regular



Giant
Instant
Oatmeal
Original
Flavor



Giant Eagle
Instant
Oatmeal
Original



Great Value
Instant Grits
Original



Great Value
Instant
Oatmeal
Original



Harris Teeter
Instant
Oatmeal
Original



Malt-O-Meal
Farina



Quaker
Instant Grits
Original



Quaker
Instant
Oatmeal
Original



**Signature
Select**
Instant
Oatmeal
Original



Wegmans
Instant
Oatmeal
Original



Possible
ways to
buy up to
36-ounces
(1020 g)
of cereal

18-oz
Cereal
(510 g)

+

18-oz
Cereal
(510 g)

=36-ounces

12-oz
Cereal
(340 g)

+

12-oz
Cereal
(340 g)

+

12-oz
Cereal
(340 g)

= 36-ounces

24-oz
Cereal
(680 g)

+

11.8-oz
Hot
Cereal
(335 g)

=35.8-ounces

14-oz
Cereal
(397 g)

+

12-oz
Cereal
(340 g)

+

9.8-oz
Hot
Cereal
(278 g)

= 35.8-ounces

Oats: Buy with your WIC whole grains benefit.
See the Whole Grains - Oats page for details.



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To file a program discrimination complaint, a complainant should complete a Form AD-3027, USDA Program Discrimination Complaint Form, which can be obtained online at <https://www.usda.gov/sites/default/files/documents/ad-3027.pdf>, from any USDA office, by calling (866) 632-9992, or by writing a letter addressed to USDA. The letter must contain the complainant's name, address, telephone number, and a written description of the alleged discriminatory action in sufficient detail to inform the Office of the Assistant Secretary for Civil Rights (OASCR) about the nature and date of an alleged civil rights violation. The completed AD-3027 form or letter must be submitted to USDA by:

- (1) mail: U.S. Department of Agriculture
Office of the Assistant Secretary for Civil Rights
1400 Independence Avenue, SW
Washington, D.C. 20250-9410; or
- (2) email: program.intake@usda.gov.

This institution is an equal opportunity provider.

(C-06/0226)



Questions?

Ask your local WIC staff or call the
Maryland WIC office at **1-800-242-4942**
or visit our website at

www.mdwic.org



SPECIFICATIONS FOR AUTHORIZED FOODS

A. Milk and Milk Alternatives

Milk (Food Packages III, IV, V, VI and VII)

1. Must conform to the FDA Standard of Identity (21 CFR 131.110) for whole, reduced fat, low fat, and fat free cow's milk.
2. Must meet standards outlined in Table 4 of 7 CFR 246.10(e)(12).
3. Must be pasteurized.
4. All reduced fat, low fat, and fat free must contain at least 400 international units of vitamin D per quart (100 IU per cup) and 2,000 international units of vitamin A per quart (500 IU per cup).
5. May be evaporated, dry (i.e. powdered), ultra-high temperature, Kosher, or lactose- reduced or lactose free forms. Must conform to FDA Standard of Identities for evaporated (21 CFR 131.130), dry whole milk (21 CFR 131.147), nonfat dry milk (21 CFR 131.127).
6. May not be grass fed or organic, super or ultra skim, specialty milks (added DHA, ultra-filtered, or protein fortified), cultured milks (buttermilk, acidophilus, or kefir), chocolate or other flavored/sweetened milk, goat milk, filled evaporated milk, sweetened condensed milk, or milk in glass containers.

Cheese (Food Packages III, IV, V, VI, and VII)

1. Must conform to the FDA Standard of Identity for cheese (21 CFR part 133); American, Cheddar, Monterey Jack, part-skim or whole Mozzarella, Swiss, Provolone (non-smoked), Muenster, Colby, or blends of approved cheese.
2. Must meet standards outlined in Table 4 of 7 CFR 246.10(e)(12).
3. Must be domestic cheese made from 100% pasteurized milk.
4. May be labeled low and reduced fat or low sodium.
5. May not be organic; imported; deli; made from goat or sheep milk; cheese product, spread, or food; fresh mozzarella; cream, ricotta, or cottage cheese; or contain flavors, nuts, peppers, or crackers.

Yogurt (Food Packages III, IV, V, VI, and VII)

1. Must be pasteurized and conform to the FDA Standard of Identity (21 CFR

131.200).

2. Must meet standards outlined in Table 4 of 7 CFR 246.10(e)(12).
3. Must not have more than 16 g of added sugars and a minimum of 106 IU (2.67 mcg) of vitamin D per 1 cup yogurt.
4. May be plain or flavored and fortified with vitamin A and other nutrients.
5. May not be 100% grass fed or organic, Greek or Greek style, lactose free, plant-based, goat or sheep milk, drinkable, in multi-packs, pouches/tubes, containing artificial, reduced-calorie, or no-calorie sweeteners, or with accompanying mix-in ingredients such as granola, candy pieces, honey, nuts, and similar ingredients.

Plant-based milk alternative (Food Packages III, IV, V, VI, VII)

1. Must contain no more than 10 grams of added sugar per cup. Must be fortified to meet the following nutrient levels per cup: 276 mg calcium, 8 grams of protein, 500 IU vitamin A, 100 IU (2.5 mcg) vitamin D, 24 mg magnesium, 222 mg phosphorus, 349 mg potassium, 0.44 mg riboflavin, and 1.1 mcg vitamin B12, in accordance with fortification guidelines issued by FDA.
2. Must meet standards outlined in Table 4 of 7 CFR 246.10(e)(12).
3. May be flavored or unflavored.
4. May not be light/fat free varieties or organic.

Tofu (Food Packages III, IV, V, VI, VII)

1. Must contain a minimum of 100 mg of calcium per 100 grams of tofu.
2. Must meet standards outlined in Table 4 of 7 CFR 246.10(e)(12).
3. May not contain added fats, sugars, oils or sodium.
4. Must be of any unflavored variety or texture and block form.
5. May not be any other form other than block (i.e. cubed).
6. May be organic.

B. Breakfast Cereal (Food Packages III, IV, V, VI, and VII)

1. Must meet standards outlined in Table 4 of 7 CFR 246.10(e)(12).
2. Must provide a minimum of 28 milligrams of iron per 100 grams dry cereal.
3. Must contain no more than 21.2 grams of added sugars per 100 grams dry cereal (6 grams per dry ounce).
4. 75% of cereals must contain whole grain as the first ingredient.
5. May not be organic; individual serving size packages; or contain artificial, reduced-calorie, or no-calorie sweeteners.

C. Juice (Food Packages III, IV, V, VI, and VII)

1. Must be pasteurized 100% unsweetened fruit juice, single strength fluid or blends.
2. Must conform to the FDA Standard of Identity for fruit juice (21 CFR part 146) and vegetable juice (21 CFR part 156).
3. Must meet standards outlined in Table 4 of 7 CFR 246.10(e)(12).
4. Must contain at least 30 milligrams of vitamin C per 100 milliliters of juice. Except for 100% citrus juices, vitamin C content must be verified.
5. May be fortified with other nutrients.
6. May not be organic, fresh-squeezed, or packaged in a glass bottle.

D. Eggs (Food Packages III, IV, V, VI, and VII)

1. Must conform to the FDA Standard of Identity (21 CFR 160.105) for fresh shell domestic hens' eggs.
2. Must meet standards outlined in Table 4 of 7 CFR 246.10(e)(12).
3. Must be white or brown and medium or large.
4. May not be organic, free range, pasture raised, small, extra-large, or jumbo, or specialty egg such as fertile, low fat or cholesterol, omega-3, or pasteurized variety.

E. Mature Legumes and Nut/Seed Butter (Food Packages III, IV, V, VI and VII)

Mature legumes

1. Must be plain mature dry beans, peas, or lentils in dry-packaged or canned form (regular or reduced in sodium content).
2. Must meet standards outlined in Table 4 of 7 CFR 246.10(e)(12).
3. May not be organic, water as first ingredient, soup/soup mixes, contain added meats, sugars, fats, oils, vegetables, or fruits. Does not include green beans, green peas, snap beans, yellow beans, and wax beans.

Peanut butter and Sunflower Seed Butter

1. Peanut butter must conform to the FDA Standard of Identity (21 CFR 164.150).
2. Must meet standards outlined in Table 4 of 7 CFR 246.10(e)(12).
3. May be creamy or chunky and salted or unsalted.
4. May not be organic, spread, with non-hydrogenated oil or palm oil, reduced fat; with added marshmallows, honey, jelly, chocolate, or similar ingredients, honey roasted, or with artificial, reduced-calorie, or no-calorie sweeteners. May not be any nut/seed butter other than peanut or sunflower seed butter.

F. Canned fish (Food Package III, IV, V, VI, and VII)

1. May be light tuna, pink salmon, or sardines; must conform to the FDA Standard of Identity for light tuna (21 CFR 161.190) and pink salmon (21 CFR 161.170).
2. Must meet standards outlined in Table 4 of 7 CFR 246.10(e)(12).
3. May be packed in water or oil, contain added sauces and flavorings, regular or low sodium.
4. May not be Albacore (or white) tuna or red salmon; organic; gourmet; or be packaged in a pouch, bowl, or kit.

G. Fruits and Vegetables

All types (fresh, frozen, canned, & dried) and may be organic. Must meet standards outlined in Table 4 of 7 CFR 246.10(e)(12).

Fresh Fruits and Vegetables (Food Packages II, III, IV, V, VI and VII)

1. May be any variety of fresh whole or cut fruit without added sugar. Must conform to FDA Standard of Identity (21 CFR 101.95).
2. May be any variety of fresh whole or cut vegetables without added sugars, fats, or oils (21 CFR 101.95).
3. May be fresh herbs, cut at the root or with root intact without added fats, oils, or sugars. May be blends of approved herbs. May not be potted herbs, dried herbs/spices, or seeds.
4. May not contain dips, sauces, dressings, cheese, nuts, croutons; salad bar items; fruit baskets; or decorative items.

Frozen Fruits and Vegetables (Food Packages II, III, IV, V, VI and VII)

1. May be any variety of frozen fruits without added sugars, fats, oils, salt (sodium), artificial, reduced-calorie, or no-calorie sweeteners.
2. May be any variety of frozen vegetables without added sugars, fats, oils, sauces, cheese, milk, rice, pasta, grains, breading, meat, or soups. Must have vegetable as the first ingredient. Must conform to FDA Standard of Identity as appropriate (21 CFR part 155).

Canned Fruits and Vegetables (Food Packages II, III, IV, V, VI and VII)

1. May be any variety of canned fruit that conforms to the FDA Standard of Identity (21 CFR part 145) and is water- or juice-packed without added sugar, artificial, reduced-calorie, or no-calorie sweeteners, fats, oils, or sodium.
2. May be any variety of canned vegetables that conforms to the FDA Standard of Identity (21 CFR part 155) without added sugars, fats, oils, meat, rice, pasta, other grains. Canned vegetables may be regular or low sodium.
3. Must contain fruit or vegetable as the first ingredient listed.
4. May not be pickled vegetables, relishes, olives, catsup/ketchup, with vinegar added, soup, creamed vegetables, vegetables with added sauces, or pouches.

Dried Fruits and Vegetables (Food Packages III, IV, V, VI and VII)

1. May be any variety of plain dried fruits and vegetables without added nuts, fats, oils, salt, sugars, artificial, reduced calorie, or no-calorie sweeteners.
2. May not be fruit leathers, roll-ups, or with added nuts.

H. Whole wheat bread, buns/rolls, tortilla, pita, and other whole unprocessed grains (Food Packages III, IV, V, VI and VII)

1. 100% whole wheat bread, buns, or rolls must conform to the FDA Standard of Identity (21 CFR 136.180) but may not be organic or contain added fruit or nuts. Whole wheat flour and/or bromated whole wheat flour must be the only flour listed in the ingredients list.
2. Must meet standards outlined in Table 4 of 7 CFR 246.10(e)(12).
3. Brown rice, white quinoa, bulgur (cracked wheat), and buckwheat may be substituted for bread but cannot contain added sugars, fats, oils, salt, flavors, sauces, meat, or vegetables or be packaged in a cooking pouch. May not be organic or precooked.
4. Cornmeal (including blue) may be substituted for bread and must conform to FDA Standard of Identity 21 CFR 137.260 & align with USDA School Meal Guidance. May not be degerminated or degermed. May not be organic.
5. Soft corn and whole wheat tortillas may be substituted for bread but cannot be fried or have added flavors. Soft corn tortillas made from ground masa flour (corn flour), whole corn, corn (masa), whole ground corn, corn masa flour, masa harina, and white corn flour. Whole wheat tortillas only flour listed in the ingredients must be whole wheat flour. May not be organic.
6. Whole wheat or whole grain pasta may be substituted for bread but cannot contain added sugars, fats, oils, salt, protein, fiber, legume flours, nut flours, and cannot be flavored. Must conform to FDA Standard of Identity (21 CFR 139.138). Whole wheat flour and/or whole durum wheat flour must be the only flour listed in the ingredients list. May not be organic.
7. Oats may be substituted for bread but cannot contain added sugars, fats, oils, salt, protein, fiber, and cannot be flavored. May be instant-, quick-, or regular-cooking. May not be organic.

I. Infant Foods (Food Package II, III)

Cereal

1. Must contain a minimum of 45 milligrams of iron per 100 grams dry cereal.
2. Must meet standards outlined in Table 4 of 7 CFR 246.10(e)(12).
3. May be organic.
4. Must not contain formula, milk, fruit, or other non-cereal ingredients.

Fruits and Vegetables

1. Plain vegetables or mixed vegetables, plain fruit or mixed fruits, mixed fruits and vegetables of commercial infant food. The fruit or vegetable must be listed as the first ingredient. May be organic.
2. Must be without added sugars, salt, starches, or meats.
3. Must meet standards outlined in Table 4 of 7 CFR 246.10(e)(12).

Meat

1. Any variety, single ingredient commercial infant food meat or poultry, "stage 1 or 2," without added sugar or salt. May contain added broth or gravy. May be organic.
2. Must meet standards outlined in Table 4 of 7 CFR 246.10(e)(12).

Reference: Table 4 7 CFR 246.10(e)(12), Minimum Requirements and Specifications for Supplemental Foods

**MARYLAND DEPARTMENT OF HEALTH
WIC PROGRAM
POLICY AND PROCEDURE MANUAL**

**Policy and Procedure Number: 3.05
Effective Date: October 1, 2001
Revised Date: July 1, 2020**

SECTION: FOOD PACKAGES

SUBJECT: Returned Formula

A. Policy

1. Participants returning unopened cans of non-expired formula may receive a replacement when the return is due to one of the reasons outlined in Policy and Procedure 4.10 Food Benefit Issuance, Replacement and Over-issuance.
2. Staff should use the formula calculator in the management information system to assist in determining the appropriate amount of replacement formula to provide when the form (powder, concentrate, ready-to-use) or packaging size for the formula requested is different from the formula returned.
3. Formula may not be provided to extend the food package beyond the supplemental amount allowable by federal WIC regulations 7 CFR 246.10(e) for Food Packages I, II, and III, or to provide formula in addition to food in Food Packages IV through VII.

B. Procedure

1. Returned formula shall be inventoried and tracked. Local agency staff may use the Formula Return/Calculate screen in the management information system or Attachment 3.05A Formula Inventory Log to track returned formula including returned CAP issued formula or may develop their own version.
2. Returned formula shall be inspected for visible defects and unexpired use-by-date.
3. Formula that has no signs of defects and unexpired use-by-date may be donated to food assistance groups that give formula away for free. This shall be confirmed annually. There cannot be a charge for the formula. Attachment 3.05B Food/Formula Donation Record shall be used to document formula donation and attached to Returned Formula Log report or Attachment 3.05A Formula Inventory Log after donation. Returned formula shall not be donated directly to a participant.
4. Visibly damaged or dented formula cans or formula with expired use-by-date shall be discarded monthly, at a minimum, following these steps:
 - a. Pour concentrate or ready-to-feed formula down the drain.
 - b. Pour powdered formula into the trash.

Attachments:

3.05A Formula Inventory Log

3.05B Food/Formula Donation Record

Reference: WIC Policy Memorandum #2020-1, December 12, 2019, Donation of
Unused Returned Infant Formula.

Revisions:

- 10/08 Added a paragraph on page 1 stating that returned formula may be replaced for the specific reasons noted. Added information on page 2 referring to use of Attachment 3.05B when replacing returned formula; reworded some of the information in that paragraph. Added Attachment 3.05 B.
- 10/10 Removed Attachment 3.05 B. Staff will use the formula calculator in WOW to determine the most appropriate replacement amount for returned formula. Changed information on page 2 indicating amount of formula provided should not exceed maximum amount for each age group.
- 03/11 Corrected typographical errors in third paragraph of Policy section.
- 10/14 Updated B.1 Procedure to state the reasons for which participants, not applicants, may be given formula from the local agency supply; deleted the references to applicants.
Updated Attachment 3.05A to include the formula form (powder, concentrate or ready-to-use), the quantity in or out, the quantity balance and a numerical reason code with a corresponding key below the table.
- 10/15 To be consistent with federal language the term ready-use (RTU) formula was replaced with ready-to-feed (RTF).
- 07/17 Updated policy for eWIC replaced checks with food instrument or benefits. Referenced Policy 4.30e related to replacement of lost or stolen food instruments. Updated Attachment 3.05Ae Reason Codes related to checks to benefits and food instrument.
- 11/19 Updated policy with instruction on donation and disposal of returned formula. Added Attachment 3.05B Formula Donation Record to document formula donation.
- 07/20 Added reference: WIC Policy Memorandum #2020-1. Added management information system returned formula log, Formula Return/Calculate. Updated name of 3.05B to Food/Formula Donation Record.

Clinic: _____

Formula Inventory Log

Staff Initials Receiving Formula	Date Received	WIC ID Number	Formula Name	Pwd Conc RTF	Reason Code	Quantity In	Date Donated/ Disposed	Quantity Out	Staff Initials Donating/Disposing Formula

Reason Codes: 1 – Formula change 2 – Damaged/expired/recalled 3 – Other- Requires LA Coordinator approval and documentation in participant's record



FOOD/FORMULA DONATION RECORD

Type or print legibly. A separate form is to be used for each donation.

Date _____

I, _____, donated the following item(s) to

_____ at _____:
(Name of Organization) (Address)

Quantity

Item

_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____

I have received the above items as charitable contributions.

Name _____
(Printed)

Title _____

Signature _____

Date _____

MARYLAND DEPARTMENT OF HEALTH
WIC PROGRAM
POLICY AND PROCEDURE MANUAL

Policy and Procedure Number: 3.06
Effective Date: October 1, 2008
Revised Date: December 19, 2023

SECTION: **FOOD PACKAGES**

SUBJECT: **Medical Assistance Payment for Exempt Infant Formulas and WIC-eligible
Nutritionals**

A. Policy

1. For WIC participants who receive Medical Assistance and require a contract infant formula WIC shall provide the formula—whether consumed orally or through a tube-- up to the WIC-allowed maximum volume. The current contract formulas can be found in Policy and Procedure 3.02.
2. For WIC participants who receive Medical Assistance and require an exempt infant formula (ie. Neosure, Alimentum, or Nutramigen) or WIC-eligible nutritional (ie. Elecare Jr or Pediasure), the Maryland Medical Assistance Program may provide the product if the participant:
 - a. **Is tube-fed;** or
 - b. **Participates in the Rare and Expensive Case Management (REM) Program.** The (REM) Program is a case-managed, fee-for-service health insurance option for Maryland Medical Assistance recipients with certain qualifying medical conditions. Examples of conditions that may qualify an individual for REM include phenylketonuria and other inborn errors of metabolism, cystic fibrosis, spina bifida, chronic renal failure, and quadriplegia.

B. Procedure

1. Local agency staff shall review the request for the exempt infant formula or WIC-eligible nutritional and determine if the participant receives REM and/or is tube-fed. If the participant **is not tube-fed and not receiving REM**, WIC shall provide the product up to the maximum volume allowed by WIC federal regulations.
2. If the participant **is tube-fed and/or receiving REM**, staff shall inform the participant or caregiver that the Maryland Medical Assistance Program may provide the exempt infant formula or WIC-eligible nutritional as follows:

- a. **For participants that are enrolled in the Maryland's Medical Assistance Medicaid Managed Care (MCO) Program and are tube-fed:** The participant's MCO is responsible for providing the exempt infant formula or WIC-eligible nutritional. Examples of Medical Assistance MCOs include Amerigroup, MedStar, Family Choice and Priority Partners.
- i. If a participant receives exempt infant formula or WIC-eligible nutritional via tube and orally, WIC shall provide the amount fed orally as needed, up to the WIC-allowed maximum volume.
 - ii. If a participant receives a contract formula via tube, WIC shall provide the formula, up to the WIC-allowed maximum volume. Tube fed infants over 6 months of age, who are receiving a standard contract infant formula, may not receive additional formula in lieu of complementary foods.
- b. **For participants in the REM Program:** The assigned REM case manager should work with the participant's primary care provider to obtain the exempt infant formula or WIC-eligible nutritional regardless of whether it is consumed orally or through a tube.
- i. Inform the participant's health care provider or REM case manager that the REM Program may provide the exempt infant formula or WIC-eligible nutritional.
 - ii. Provide a one-month supply of the exempt infant formula or WIC-eligible nutritional to the participant, as needed, while the request is processed. Additional product may be provided if the authorization process takes longer than one month.
 - iii. Document all communication with the participant or caregiver and health care provider in the participant's food prescription note screen.
- c. **For participants that do not currently receive Medical Assistance (including REM);** refer to the Maryland Medical Assistance Program. If the participant receives private insurance, the participant or caregiver should contact their health care provider regarding coverage of tube feeding. WIC may provide exempt infant formula or WIC-eligible nutritional while the request is being processed.

Reference:

1. SFP 01-113
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Revisions:

- 10/10 B.1. d. Changed information system to WOW.
Attachment 3.06A: Replaced 2007 Medicaid form with 2010 version.
Updated formula names in footnote 2.
- 10/13 Updated name of Neocate One Plus to Neocate Junior in Section A.
Footnote #2: Replaced Similac Sensitive Isomil Soy with Enfamil Prosobee as an example of a standard infant formula (since Enfamil Prosobee is the current Maryland contract soy formula) and added Similac Total Comfort.
Updated link for Maryland Medicaid Pharmacy Program website.
Changed “formula” to “exempt infant formula” or “exempt formula” to “exempt infant formula” for consistency throughout the policy.
Attachment 3.06A: Replaced 2010 Medicaid form with 2011 version (most recent update).
- 10/15 Changed policy name to “Medical Assistance Payment for Exempt Infant Formulas and WIC-Eligible Nutritionals”. Updated soy contract formula to Gerber Good Start Soy. Moved REM definition from the footnote to the body of the policy. Removed definition of standard infant formula and exempt infant formula, as both are defined in other policies. Medical Assistance replaced “Health Choice” to reflect the language used by staff and to be consistent with other policies. For clarity and to minimize staff confusion the procedure was reorganized into three distinct situations; participants receiving Medical Assistance, participants receiving REM and participants not receiving either.
Attachment 3.06A was removed.
- 02/19 Revised A.1. added Similac Total Comfort to list of contract formulas and Similac Soy Isomil.
B.a.ii. replaced standard with contract.
- 07/20 Tube fed infants over 6 months of age, who are receiving a standard contract formula, may not receive additional formula in lieu of complementary foods.
- 12/23 A.1. Removed names of current contract formulas and replaced with current contract formulas can be found in Policy and Procedure 3.02.